

N.Y.C Groceries Branding & Design Consultant

Release Date: Thursday, May 28, 2026

Information Session Date: Thursday, June 11, 2026

Submission Deadline: Tuesday, June 30, 2026

CONTENTS

I. GENERAL INFORMATION	2
II. SCOPE OF SERVICES	4
III. PROPOSAL SUBMISSION REQUIREMENTS	6
IV. COMPENSATION	7
V. MINORITY AND WOMEN-OWNED BUSINESS ENTERPRISE PROGRAM.....	8
VI. SELECTION CRITERIA.....	8
VII. SUBMISSIONS	9
VIII. TERMS AND CONDITIONS	13
APPENDIX 1:	17
APPENDIX 2:	18
APPENDIX 3:	19
APPENDIX 4:	23
APPENDIX 5:	27
APPENDIX 6:	111

I. GENERAL INFORMATION

A. Background

New York City Economic Development Corporation (“NYCEDC”) is seeking proposals (“Proposals,” each a “Proposal”) from branding and design firms (“Respondents,” each a “Respondent”) to develop the visual identity for “N.Y.C. Groceries”, a new network of five (5) City of New York (the “City”)-supported grocery stores, with one located in each of the five (5) boroughs of New York City. The goals of the N.Y.C. Groceries initiative are to bring down the cost of everyday groceries and household staples, strengthen neighborhood food access, and demonstrate a new role for public sector leadership in food affordability.

It is currently anticipated that the five N.Y.C. Groceries stores will be full-service grocery stores managed by one or more third-party grocery operator(s) and will sell a subset of highly in-demand products (the “Core Basket”) at discounted prices relative to market prices, providing direct relief for shoppers at checkout. The City will pay for the initial build out and ongoing rent and real estate tax costs associated with the grocery stores, with the operator required to pass those savings on to customers in the form of discounted prices on the Core Basket. The City plans to open five N.Y.C. Groceries stores—one in each borough—by the end of 2029, with the first store expected to open its doors in late 2027.

A fresh, vibrant brand identity is essential to successfully bring these stores to market, communicate the unique value proposition, and achieve widespread adoption amongst New Yorkers. These brand parameters will also serve as critical inputs for the physical makeup of the stores themselves, guiding everything from materials to signage, lighting, products, merchandise, and customer flow.

B. Information on the Sites

Five N.Y.C. Groceries locations are planned to open by the end of 2029—one store located in each borough—with the long-term potential to open additional store locations throughout New York City. The first store will be open by end of 2027. The brand identity will be leveraged across the initial five stores and potentially any subsequent locations that are opened in the future.

Currently, two of the five sites have been identified. The Manhattan store will be a newly constructed building as part of the broader La Marqueta campus in East Harlem. The Bronx store will be within an existing light industrial building that is part of the larger mixed-use Peninsula campus in Hunts Point. All stores are expected to be at least 10,000 square feet.

C. Overview of Request for Proposals

The selected Respondent (the “Consultant”) will be responsible for research and development of the N.Y.C. Groceries brand, ultimately leading to an approved brand strategy and visual identity. The Consultant will also be responsible for creating brand guidelines used in collaboration with additional contracted firms (collectively, the “Services”).

D. Timeline

Milestone	Time Period
RFP Release	Thursday, May 28
Info Session	Thursday, June 11, 11:00 AM EST
Inquiry Submission Deadline	Friday, June 12, 5:00 PM EST
Q&A Web Posting	Thursday, June 18
RFP Submission Deadline	Tuesday, June 30, 4:00 PM EST

E. Respondent Profile

Respondent(s) shall submit a Proposal that addresses all elements described herein. The Respondent(s) shall clearly indicate how they will address each element and include a fee and cost schedule for their Proposal of activities, operations, or otherwise. Respondent(s) should have experience in the following disciplines:

- Developing both galvanizing brand identities and physical extensions of those brand identities in place-based, immersive environments, products, and merchandise.
- Collaborating with architecture and engineering firms to apply branding guidelines to built environments

Respondent may be a consortium with partners and subcontractors to ensure relevant experience for full Scope of Services.

F. NYCEDC’s Role

NYCEDC may play a variety of roles depending on the needs of the Consultant and the details of the proposed Services. NYCEDC, in collaboration with the City, will oversee the Consultant and provide strategic support and serve as facilitator where necessary, including thorough briefing and creative requirements at the onset of the project.

Separate from and concurrent to brand development, NYCEDC will provide publicity and marketing to amplify the concept of N.Y.C. Groceries. Once the brand is launched, NYCEDC may provide publicity and marketing support to amplify the brand message on an ongoing basis as the N.Y.C. Groceries stores are constructed and opened to the public.

The acceptance of any Proposal shall be subject to, and contingent upon, the execution by NYCEDC of a contract (the “Contract”) substantially in the form of the consultant contract (the “Contract Draft”) attached hereto as Appendix 5. NYCEDC shall not be bound to the terms of the Contract Draft but shall use such form as a basis of negotiating a final Contract with the selected Consultant, if any. However, please note that the General Terms and Conditions (Part II) and the Appendices (Part III) of the Contract Draft, other than its Appendix B and Appendix C, are NOT NEGOTIABLE.

II. SCOPE OF SERVICES

The Consultant will work with the Marketing department at NYCEDC, along with support from an interdepartmental team, to deliver the Services set forth below. The Consultant will be responsible for the research, exploration and design work, and ultimately deliver:

Brand Research, Strategy, and Concepting (Anticipated July-August 2026)

Task 1A: Conduct desktop research and bespoke focus group interviews to uncover audience insights that can elevate the brand positioning of N.Y.C. Groceries. This should include studying historically significant brands and logos related to the City of New York that can be incorporated or referenced while developing a distinct N.Y.C. Groceries brand.

Task 1B: Observe City-led community engagement session(s) if schedule alignment allows to support brand research.

Task 1C: Develop psychographic profiles of New York grocery shops and household decision makers to understand pain points and brand tastes / preferences.

Task 1D: Analyze the competitive landscape of existing grocery stores and retail food establishments in New York City and determine potential existing brand loyalty barriers to market entry that can inform N.Y.C. Groceries brand positioning.

Visual Identity and Design Application (Anticipated August-October 2026)

Task 2A: Provide concepts for each of the following for NYCEDC review and selection:

- Brand name
- Logo (primary, secondary, icon)
- Typography system
- Color palette
- Tagline(s)

Task 2B: Guidelines and mockups for in-store and exterior environmental branding applications, including but not limited to:

- Exterior store signage
- Palette of surface finishes
- Lighting (color, reflection, contrast)
- Brand-aligned displays or kiosks
- Window vinyl graphics
- Wayfinding posters
- Aisle signage
- Category headers
- Promotional banners
- Price labels
- Product private labeling
- Employee identification (uniforms, aprons, or name tags)
- Digital signage
- Branded materials and promotional merchandise (tote bags, etc.)

Task 2C: Upon NYCEDC review and instruction, provide additional rounds of creative ideation for selected brand identity in response to NYCEDC feedback.

Architecture and Engineering Collaboration (Anticipated 2027-2029)

Task 3A: Participate with NYCEDC in a brand deployment review for each store during the design development phase. The selected architecture and engineering teams will submit a mid-fitout presentation of store location and layout indicating

the application of brand related materials, signage, lighting, etc. The brand review output will consist of markups and comments providing direction to ensure consistent application of the brand standards.

Task 3B: As-needed review final submittals prior to fabrication of store signage including application to site specific conditions for window graphics, exterior signage, etc.

Account Management

Task 4A: Provide regular updates and progress reports to the designated staff throughout the term of the contract.

Task 4B: Manage external vendors or subcontractors, as needed.

III. PROPOSAL SUBMISSION REQUIREMENTS

NYCEDC has established a streamlined set of RFP submission requirements reflecting the Project scope of work outlined in Section II. Respondents must submit a detailed proposal not to exceed thirty (30) pages, excluding the required appendices as described below, that includes the information outlined below:

A. Organizational Overview

Respondents must provide a description of their organization, including its mission and experience in brand development. The overview should highlight:

- **Identifying Information:** Name, address and telephone number of the organization
- **Respondent Team Qualifications:** Bios and resumes for each member of the Respondent team, highlighting relevant experience of principal members to be involved in delivering the scope of Services
- **Organizational Structure:** Outline of organizational structure for the Respondent team that will be responsible for delivering the scope of Services. If the Respondent is a consortium, or if partners or subcontractors are involved, identify the lead Respondent and the roles and responsibilities of each partner entity.
- **Person in Charge:** In its proposal, the Respondent shall identify the member of the Respondent's staff who will have primary responsibility to perform and/or supervise and coordinate the performance of the Services.
- **Experience:** Developing both galvanizing brand identities and physical extensions of those brand identities in place-based, immersive environments.

- **Expertise:** Collaborating with architecture and engineering firms to apply branding guidelines to built environments.

Respondents must provide examples of projects similar in size and scope they have managed, demonstrating their ability to execute the proposed scope of Services. For each example, include:

- Brief project description, deliverables completed, date of project start and completion
- Description of research conducted to inform brand development
- Lessons learned or successes achieved
- Visual examples representing the finished project

B. Work Plan and Approach

Respondents must submit an overview of their approach to brand development in general. Respondents should explain how they will approach each area of the scope of services and how they will meet the project timeline:

- Brand Research, Strategy, and Concepting
- Visual Identity and Design Application
- Architecture and Engineering Collaboration
- Account Management

To ensure the branding vision can be incorporated into site design and construction to meet the end of 2027 deadline, it is anticipated that the brand development period will run from August to October 2026. Additional work to integrate the brand into store design will be ongoing.

Respondents must not pitch brand concepts as part of their Proposal submission.

C. Required Appendices

- **Statement of Agreement:** Respondents must provide a statement signed by an authorized principal or officer stating that the Respondent has read this RFP and the Appendices fully and agrees to the terms and conditions set forth herein and therein. See Appendix 2 for the template Statement of Agreement.
- **Reference Information:** Respondents must provide the name, telephone number, email address, and relationship description for a minimum of three (3) relevant professional references related to brand development projects.

- **M/WBE Forms:** Respondents must provide an M/WBE Narrative and Subconsultant Participation Plan, substantially in the form of Appendix 3 and Appendix 4.
- **Doing Business Data Form:** Respondents must submit the Doing Business Data Form in accordance with New York City procurement requirements. Information for the Doing Business Form is located in Appendix 1.
- **Financial Information:** Respondents must provide a cost proposal that outlines the allocation of resources necessary to deliver the scope of services effectively. Respondents should provide this information by completing the form located in Appendix 6.

IV. COMPENSATION

Under the Contract, NYCEDC will agree to pay to the Consultant an amount not to exceed a Maximum Contract Price to be negotiated between NYCEDC and the Consultant based upon its response to this RFP. The Maximum Contract Price shall be the maximum compensation for all of the Services provided by the Consultant pursuant to the Contract and all expenses of the Consultant in connection therewith, including costs of any Subcontractors. The Maximum Contract Price shall be payable as provided for in Sections 2.1 and 2.2 of the General Terms and Conditions (Part II) of the Contract and Appendix C (Part III of the Contract).

A. Payments

In order to receive payment for Services, the Consultant will be required to submit a Requisition setting forth in detail, for the period for which payment is requested, the Services actually rendered during that period and the amount of payment requested and due therefor. Requisitions may not be submitted more than once per month. All Requisitions shall be subject to NYCEDC's review, verification and approval, and all payments shall be conditioned upon NYCEDC's determination that all Services have been performed satisfactorily and in accordance with the terms of the Contract.

B. Sales and Use Tax

NYCEDC is exempt from state and local sales and use tax. SUCH TAX IS NOT TO BE INCLUDED IN PROPOSALS or in invoices submitted under the Contract. NYCEDC will provide the selected Consultant with an appropriate "sales and use tax exemption certificate".

V. MINORITY AND WOMEN-OWNED BUSINESS ENTERPRISE PROGRAM

The Minority- and Women-Owned Business Enterprise (M/WBE) requirement is designed to ensure equitable participation of M/WBEs in the contract. Respondents must demonstrate a commitment to M/WBE inclusion by meeting or exceeding established participation goals, stated below. The participation goal represents the percentage of the contract value that must be allocated to M/WBE certified vendors.

Respondents are required to submit a M/WBE Narrative (Appendix 3) and an M/WBE Subconsultant Participation Plan (Appendix 4) detailing their strategy for engaging certified M/WBEs as prime contractors, subcontractors, suppliers, or consultants. Compliance with NYCEDC's M/WBE program includes good faith efforts in outreach, reporting, and tracking M/WBE participation throughout the contract term.

M/WBE Participation Goal: 30%

VI. SELECTION CRITERIA

There is no financial obligation by NYCEDC following the selection of an RFP Proposal. NYCEDC will evaluate each Proposal according to the criteria listed below, taking into account the information provided in the proposal and any other information about the Respondent and its performance available to NYCEDC. Proposals that are not complete or do not conform to the requirements of this RFP may not be considered.

NYCEDC reserves the right to request additional information, site visits, interviews, or presentations, from one or more of the Respondents.

- 40%** The Respondent's and, as applicable, the proposed Consultant Team's experience in providing services similar to the Scope of Services described herein; the terms under which the Respondent will commit its personnel and, as applicable, the personnel of the proposed Consultant Team members, without transfers and changes.
- 35%** The quality of the Proposal and the degree to which it demonstrates the Respondent's full understanding of and the ability to perform the Services to be rendered; the content of the Proposal demonstrating the Respondent's full understanding of the Services schedule and budget.
- 5%** The proposed fee and cost schedules

- 5% The quality of the Respondent's management, reputation, and references and, as applicable; the quality of the proposed Consultant Team; favorable history, if any, in contracting or doing business with the City and/or NYCEDC.
- 15% The Respondent's proposed plans for encouraging participation by minority and women-owned business enterprises in connection with the Services including, as applicable, the respondent's M/W/DBE Subcontractors Participation Plan or M/WBE Narrative Form.

VII. SUBMISSIONS

A. Submission Process Details

1. Questions and Answers

Respondent(s) may submit questions and/or request clarifications from NYCEDC by submitting them to NYCEDC's email address GroceriesBrandDesign@edc.nyc, no later than 5:00 PM on **Friday, June 12, 2026**. Answers to questions will be posted at <https://edc.nyc/rfps> by **Thursday, June 18, 2026**. Questions regarding the subject matter of this RFP will not be accepted after 5:00 PM on **June 12, 2026**, however, technical questions pertaining to downloading and submitting proposals to this RFP may be directed to RFPrequest@edc.nyc on or before **Tuesday, June 30, 2026**.

2. Submissions

Respondents should submit their proposals electronically pursuant to the instructions set forth on the project web page <https://edc.nyc/rfps> by **TUESDAY, JUNE 30, 2026, at 4:00 PM EST**. All Proposals should be labeled "**N.Y.C. Groceries Brand and Design RFP Response – [RESPONDENT NAME]**" and should be **uploaded as a single zip file with this title/respondent's name**. All submissions should be in searchable PDF format and should a detailed proposal and all required appendices, as described in Section III. Please allow sufficient time to submit. Proposals received after the indicated date and hour and/or received other than through the RFP website may not be considered.

In furtherance of and without limiting NYCEDC's rights as set forth in this RFP, non-compliant proposals may, in NYCEDC's sole discretion, be considered "not responsive" and may be rejected by NYCEDC including, without limitation, proposals that are not properly labeled and/or missing any information, certifications, supplemental forms or other documentation required by this RFP or by applicable law.

3. Timeline

As previously stated above, NYCEDC expects the procurement process to following timeline:

- RFP Release Date – **MAY 28, 2026**
- Deadline for Questions Submission – **June 12, 2026**
- Answers for Submitted Questions to be Posted Publicly on RFP website – **June 18, 2026**
- Submission Deadline – **JUNE 30, 2026**

B. Modifications

NYCEDC will advise Respondents of any modifications to this RFP by posting them on <https://edc.nyc/rfps>. Nothing stated at any time by any representative of NYCEDC or of any other entity shall affect a change in or constitute a modification to this RFP unless posted on the RFP website.

Respondents are reminded to check the RFP website periodically to view updated information and answers to questions posed by other Respondents.

While NYCEDC may send notices, addenda or other information related to this RFP to Respondents via e-mail alerts or otherwise in writing, such e-mail alerts and other written materials shall be considered courtesy copies only. In the event any conflict exists between any information set forth on the RFP website and any notice, addendum or other information provided to a Respondent by NYCEDC via e-mail or otherwise, the information set forth on the RFP website shall govern. NYCEDC is not obligated to provide the Respondent with any notices, addendum or other information that appears on the website in writing.

C. Protest Procedures

The procedures set forth in this section shall apply to all protests (collectively, “Protests” and each individually, a “Protest”) related to this procurement. NYCEDC will not entertain any Protest that is untimely or fails in any manner to comply fully with the procedures set forth in this section.

1. Types of Protests: There are three types of procurement Protests:

- (a) Pre-Proposal Protest: A protest submitted prior to the Submission Deadline to challenge the notice procedures followed by NYCEDC.
- (b) Pre-Award Protest: A protest submitted after the Submission Deadline but before Contract execution; and

- (c) Post-Award Protest: A protest submitted after the Contract has been executed, but only to the extent that the protest is based on newly discovered information that was not available prior to execution of a Contract.

2. Submission of Protests/Deadlines: All Protests must be in writing and must be submitted in accordance with the following timeline for the following types of Protests:

- (a) A Pre-Proposal Protest must be submitted at least two (2) business days prior to the Submission Deadline set forth in the section entitled **Submission Process Details** of this RFP;
- (b) A Pre-award Protest must be submitted five (5) business days from the later of receipt of Notice of NYCEDC's contingent award of the Contract and the date proposals are made publicly available; and
- (c) A Post-award Protest must be submitted five (5) working days from the date the protesting party knew or should have known the newly discovered evidence that serves as the grounds of its Protest. Post-award Protest must be submitted five (5) working days from the date the protesting party knew or should have known the newly discovered evidence that serves as the grounds of its Protest.

A Protest will be considered submitted when the Protest is received by NYCEDC.

3. Contents of Protest: The Protest should include, without limitation, the following information:

- (a) Name, address and telephone number of the protester;
- (b) Appropriate identification of the procurement;
- (c) Statement of the basis of the Protest;
- (d) Supporting exhibits and documentary evidence to substantiate the grounds for the Protest; and
- (e) Form of relief requested.
- (f) Address for Submission of Protests:

NYCEDC
1 Liberty Plaza
New York, NY 10006
Attention: Maryann Catalano, Chief Contracting Officer

4. Method of Submission:

- (a) By Hand or U.S. Mail
- (b) Envelope: The envelope enclosing the Protest must be clearly labeled "PROTEST" and must list the RFP to which the Protest relates.

5. Additional Information: NYCEDC may request that the protest or submit additional information that it may need in order to consider the Protest. Any additional information requested by NYCEDC must be submitted within the time period established by NYCEDC in order to expedite consideration of the Protest. Failure of the protester to comply with a request for information within the specified time period will result in a resolution of the Protest without consideration of any information subsequently submitted by the protester in an untimely manner.

6. Determinations: The President or his/her designee has the authority to make a final determination. NYCEDC will respond to each substantive issue in the Protest. NYCEDC may, in its sole discretion, meet with the protesting Operator and any affected party to discuss the Protest. NYCEDC shall have the right to take such appropriate action as may be in the best interests of NYCEDC and the City in light of the determination. NYCEDC's determination shall be final. The Operator shall have been deemed to have received NYCEDC's determination notice no later than five (5) days from the date of mailing or upon delivery, if delivered by hand of NYCEDC's determination.

VIII. TERMS AND CONDITIONS

In addition to those stated elsewhere, this RFP and any transaction resulting from this RFP are subject to the conditions, terms, and limitations stated below:

A. Proposal as Offer to Contract

Unless a specific exception is noted, submission of a Proposal in response to this RFP shall constitute an offer on the part of the successful respondent to execute the Contract substantially in the form annexed hereto as Appendix 4. Any supporting documents or other items attached as exhibits to this RFP shall be incorporated into the Contract. The successful respondent shall cooperate in supplying any information as may be required with respect to the Background Clearance Package, which is available on the PASSPort website at <http://www1.nyc.gov/site/passport/index.page> (the "PASSPort Website"), and any other government review and approval forms. Respondent's Proposal shall remain open for acceptance by NYCEDC and shall remain

firm and binding upon the Respondent for at least sixty (60) days after the date on which the Proposals are received by NYCEDC, except that NYCEDC may by written notice to the Respondent extend that date for an additional forty-five (45) days.

B. News Releases

Recipients of this RFP shall make no news or press release pertaining to this RFP or anything contained or referenced herein without prior written approval from NYCEDC. All news and press releases pertaining to this RFP must be made in coordination with NYCEDC.

C. Investigations/Derogatory Information

The Respondent, the members of its Consultant Team, and all officers, principals, principal shareholders, partners and members thereof, if applicable, must complete a background questionnaire and shall be subject to investigation by NYCEDC and the City's Department of Investigation. The selection of a Respondent may be rejected or revoked, or the Contract, if awarded, terminated for cause, in NYCEDC's sole discretion, in the event any materially derogatory information is revealed by such investigation or otherwise including, without limitation, that any such persons or any other persons substantially involved in the Respondent's activities has committed any of the acts or omissions specified as the grounds for debarment in the City's Procurement Policy Board Rules.

D. Freedom of Information Law

All Proposals submitted to NYCEDC in response to this RFP may be disclosed in accordance with the standards specified in the Freedom of Information Law, Article 6 of the Public Officers Law of the State of New York ("FOIL"). A Respondent may provide in writing, at the time of its submission, a detailed description of the specific information contained in its submission which it has determined is a trade secret and which, if disclosed, would substantially harm such entity's competitive position. This characterization shall not be determinative but will be considered by NYCEDC when evaluating the applicability of any exemptions in response to a FOIL request.

E. Costs

NYCEDC shall not be liable for any cost incurred by the Respondent in the preparation of its Proposal or for any work or services performed by the Respondent prior to the execution and delivery of the Contract. NYCEDC is not obligated to pay any costs, expenses, damages or losses incurred by any Respondent at any time unless NYCEDC has expressly agreed to do so in writing.

F. NYCEDC Rights

This is a “Request for Proposals” and not a “Request for Bids”. NYCEDC shall be the sole judge of whether a Proposal conforms to the requirements of this RFP and of the merits and acceptability of the individual Proposals. Notwithstanding anything to the contrary contained herein, NYCEDC reserves the right to take any of the following actions in connection with this RFP: amend, modify or withdraw this RFP; waive any requirements of this RFP; require supplemental statements and information from any Respondents to this RFP, including, if the proposer is a joint venture, a copy of a joint venture agreement; award a contract to as many or as few or none of the Respondents as NYCEDC may select; accept or reject any or all Proposals received in response to this RFP; extend the deadline for submission of Proposals; negotiate or hold discussions with one or more of the Respondents; permit the correction of deficient Proposals that do not completely conform with this RFP; waive any conditions or modify any provisions of this RFP; reject any or all Proposals and cancel this RFP, in whole or in part, for any reason or no reason, in NYCEDC's sole discretion. NYCEDC may exercise any such rights at any time, without notice to any Respondent or other parties and without liability to any Respondent or other parties for their costs, expenses or other obligations incurred in the preparation of a Proposal or otherwise. All Proposals become the property of NYCEDC.

G. Applicable Law

This RFP and any Contract, Subcontract or any other agreement resulting herefrom are subject to all applicable laws, rules, regulations and executive orders, policies, procedures and ordinances of all Federal, State and City authorities, as the same may be amended from time to time, including without limitation, equal employment opportunity laws.

H. Accuracy of RFP

NYCEDC and its officers, employees, and agents make no representation or warranty and assume no responsibility for the accuracy of the information set forth in this RFP.

I. Agent Submissions

Only proposals from principals will be considered responsive. Individuals in representative, agency or consultant status may submit proposals only under the direction of identified principals, where the principals are solely responsible for paying for such services.

J. Eligibility

A Respondent submitting a Proposal to this RFP may be rejected if it or, if the Respondent is a business entity, any of its affiliates, principal shareholders, principals, partners, members, consultants, subcontractors, agents, officers, directors or employees is determined, in NYCEDC's sole discretion, to be within a category of persons or entities with whom or which the City or NYCEDC will not generally do business, including, without limitation, if such Respondent (or any of its affiliates, principal shareholders, principals, partners, members, consultants, subcontractors, agents, officers, directors or employees) (i) is in default or in breach, beyond any applicable grace period, of its obligations under any written agreement with NYCEDC or the City, unless such default or breach has been waived in writing by NYCEDC or the City, as the case may be; (ii) has been convicted of a misdemeanor and/or found in violation of any administrative, statutory, or regulatory provision in the past five (5) years; (iii) has been convicted of a felony, and/or any crime related to truthfulness and/or business conduct in the past ten (10) years; (iv) has any felony, misdemeanor and/or administrative charges currently pending; (v) has received written notice of default in the payment to the City of any taxes, sewer rents, or water charges, unless such default is then being contested with due diligence in proceedings in a court or other appropriate forum; or (vi) has owned at any time in the preceding three (3) years any property which, while in the ownership of such party, was acquired by the City by in rem tax foreclosure, other than a property in which the City has released or is in the process of releasing its interest to such party pursuant to the Administrative Code of the City.

APPENDIX 1:

DOING BUSINESS DATA FORM

Local Law 34 of 2007 (LL 34) requires the creation of a database containing information about entities that do business with the City as defined by the law, and principal officers, owners and senior managers of these entities. This information will be collected on Doing Business Data Forms that are distributed, collected and reviewed by agencies, and forwarded to the Doing Business Accountability Project (DBAP) at MOCS for processing. Collected data will be used to identify entities and people who are subject to LL 34's limitations on campaign contributions in municipal elections.

The Respondent shall complete and submit a Doing Business Data Form which can be found at <https://edc.nyc/vendor-resources> (as set forth in the links below). If the Respondent cannot access or download these forms, NYCEDC may, upon request, send the Respondent the required forms.

If you have any questions or concerns, please contact the Doing Business Accountability Project at 212-788-8104 or DoingBusiness@cityhall.nyc.gov.

[Doing Business Form](#)

[Q&A General](#)

APPENDIX 2:
STATEMENT OF AGREEMENT

SAMPLE

(On company letterhead)

Date:

New York City Economic Development Corporation
1 Liberty Plaza
New York, NY 10006
Attn: Maryann Catalano, Chief Contracting Officer, Contracts

Dear Ms. Catalano:

This letter hereby certifies that [Respondent] has read this RFP and the Appendices fully and agrees to the terms and conditions set forth in this RFP and Appendices.

Sincerely,

Consultant

Consultant Title [must be authorized principal or officer of the Respondent]

APPENDIX 3:

MINORITY AND WOMEN-OWNED BUSINESS ENTERPRISE NARRATIVE FORM

Separate attachment available at edc.nyc.gov/vendor-resources



M/WBE Narrative Form

NYCEDC is dedicated to furthering the participation of minority- and women-owned businesses in its work. Each RFP Respondent must submit this form together with its proposal to indicate how M/WBE participation will be achieved if it is selected.

Respondent Name: [Click here to enter text.](#)

Please check if respondent is M/WBE prime* ☐ ☐

Project Number: [Click here to enter text.](#)

*If prime is M/WBE, please attach Department of Small Business Services-issued M/WBE certificate

A. Establishment of numerical M/WBE contracting utilization goals or targets

The Participation Goal Range for this contract is set in Section [\[Insert section here\]](#) of the RFP. From this participation goal range, please acknowledge your intention to meet the M/WBE goal requirements of this RFP by entering a single M/WBE Participation Commitment Percentage below. Please note that a commitment percentage lower than the proposed Participation Goal range will result in a “0” score for the M/WBE selection criteria.

For participation goals disaggregated by ethnicity, please indicate the specific goal commitment you intend to subcontract by ethnicity below:

Overall M/WBE Participation Commitment Percentage*: [Click here to enter text.](#)

- **Black-Owned M/WBE:** [Click here to enter text.](#)
- **Hispanic-Owned M/WBE:** [Click here to enter text.](#)
- **Native American-Owned M/WBE:** [Click here to enter text.](#)
- **Asian WBE:** [Click here to enter text.](#)

*M/WBE Participation Commitment Percentage = Projected Payments to M/WBEs/Total Contract Payments

B. List of Subcontractors/Subconsultants (All Procurement Types)

Please list all subcontractors/subconsultants who are included as members of the team in the proposal and a sentence on their role. Indicate which ones are M/WBE, and their respective race, ethnicity and gender.

C. Strategies and methods that will facilitate participation by M/WBE firms:

Please separately attach a narrative that lists the specific strategies that will be taken to fulfill the M/WBE requirements of this contract and the goals established. Your narrative should relate to the project scope. These strategies should be specific and easily verifiable. Note that specific actions committed to in the narrative must be documented sufficiently so that proof of their application can be readily obtained. As this narrative will be a factor in selection, it is critical that consultants fulfill every aspect of the narrative set forth in the response to the RFP. Your narrative should address, but is not limited to:

- Firm's personal commitment to diversity and inclusion
- Outreach strategy on this contract
- Internal roles of team members to assure M/WBE performance. Including (but not limited to) purchasing agent, project managers, project executive, M/WBE and/or economic inclusion managers
- Accountability for first-tier subcontractors
- Bidding process & strategy on this contract

D. Experience & References

EDC as part of the M/WBE evaluation will review past projects with regards to the respondent's past M/WBE compliance. Please list five (5) projects that are similar in size and scope to this RFP, the ones that you refer to in your RFP response as part of Section ###, where your firm served as a prime/Construction Manager and where M/WBE goals were set. For every project where the goals were not met, please attach a brief narrative detailing your good faith efforts.

<i>Contract Name & Number</i>	<i>Description of work</i>	<i>M/WBE Goal (%)</i>	<i>M/WBE Award (% of M/WBE award \$ in relation to total contract \$)</i>	<i>Current or final M/WBE % (M/WBE payments divided by total payments)</i>	<i>Client Contact (Name, title, email address, phone number)</i>

E. Provide the name and contact information of in-house M/WBE contact [Click here to enter text.](#)

F. Attestation

I acknowledge that all the information provided herein is true and correct. In addition, I confirm the following:

- I have read and understand the M/WBE requirements for this contract.
- I will make and thoroughly document Good Faith Efforts utilized in encouraging M/WBE participation.
- I understand that I must notify NYCEDC of any material changes to the information submitted herein.

X _____
Authorized Person

Date

Officer's Name, Title

APPENDIX 4:

M/WBE SUBCONSULTANT PARTICIPATION PLAN

Separate attachment available at edc.nyc.gov/vendor-resources

MWBE/DBE Subcontractor Participation Plan

5/14/2026

The purpose of this form is to ensure that appropriate planning and consideration go into the consultant and contractor utilization process, and serve as documentation of your commitment to attain the level of MWBE/DBE Participation set forth in this this plan. The solicitation materials indicate whether MWBE or DBE goals apply for this contract and this form should be filled out accordingly. Please complete the forms and include (1) an Excel copy of the form and (2) an executed PDF as part of your proposal submission. Any questions regarding the form should be directed to the contract manager.

- I affirm that the following statements are true and accurate:
- 1. I will make and thoroughly document every good faith effort to meet the MWBE/DBE Participation Goal set forth herein.
 - 2. This MWBE/DBE Participation Plan lists all consultants and contractors that are expected to work on this project as of the date above, **whether MWBE/DBE or not**.
 - 3. I have verified that firms listed as MWBE/DBE below are certified by the appropriate entity.
 - 4. I have included an Intent to Perform as Subcontractor Form for each firm listed below as part of this submission.

Contractor Approval

x

Signature of Authorized Representative / Preparer

Name & Title

Date

Project Information		Project Calculations						
Contract #		Total Award Amount			Disaggregated Goals			
Project #		Total Award to Prime	\$	-	Ethnicity	Male	Female	
Project Name		Total Award to MWBE/DBE Subs	\$	-	Black American	#DIV/0!	#DIV/0!	
Prime Contractor Name		Total Award to non-MWBE/DBE Subs	\$	-	Hispanic American	#DIV/0!	#DIV/0!	
Project Manager		Total MWBE/DBE Award			\$	-		
Email		MWBE/DBE Participation Goal			#DIV/0!	Asian American	#DIV/0!	#DIV/0!
Phone						Caucasian WBE	NA	#DIV/0!
Contractor / Consultant Award Information (include information for all prime and subcontractors, regardless of MWBE/DBE status)								

Contractor / Consultant	Prime or Sub	MWBE/DBE? (Yes or No)	Ethnicity Group	Award Amount	Description of Services to be Provided	NAICS Codes	Contracting Party	Is Contracting Party MWBE/DBE? (Yes or No)	MWBE/DBE Amount
0	Prime			\$ -			NA	NA	\$ -

APPENDIX 5:
CONSULTANT CONTRACT DRAFT

Separate attachment.

**NEW YORK CITY ECONOMIC DEVELOPMENT CORPORATION
N.Y.C GROCERIES BRANDING CONSULTANT
PROFESSIONAL SERVICES CONSULTANT CONTRACT
NYCEDC CONTRACT NO. [•]
PROJECT CODE NO. [•]**

CONSULTANT CONTRACT

**NEW YORK CITY ECONOMIC DEVELOPMENT CORPORATION
N.Y.C GROCERIES BRANDING CONSULTANT
PROFESSIONAL SERVICES CONSULTANT CONTRACT
NYCEDC CONTRACT NO. [•]
PROJECT CODE NO. [•]**

PART I SPECIFIC TERMS AND CONDITIONS

PART II GENERAL TERMS AND CONDITIONS

PART III APPENDICES

**NEW YORK CITY ECONOMIC DEVELOPMENT CORPORATION
N.Y.C GROCERIES BRANDING CONSULTANT
PROFESSIONAL SERVICES CONSULTANT CONTRACT
NYCEDC CONTRACT NO. [•]
PROJECT CODE NO. [•]**

PART I

SPECIFIC TERMS AND CONDITIONS

New York City Economic Development Corporation (the “Corporation” or “NYCEDC”) and the Consultant identified below, in consideration of the mutual covenants contained in this Contract (as defined below) and other valuable and good consideration, do hereby agree to all of the terms and conditions set forth in (i) these Specific Terms and Conditions (Part I) set forth immediately below, (ii) the General Terms and Conditions (Part II) annexed hereto and made a part hereof and (iii) the Appendices (Part III) annexed hereto and made a part hereof. Capitalized terms shall have the meaning set forth in Appendix A (Definitions) unless otherwise defined in this Contract or the context otherwise requires.

1. The Contract

- 1.1 **Contract:** These Specific Terms and Conditions (Part I), the General Terms and Conditions (Part II) and the Appendices (Part III)
- 1.2 **NYCEDC Contract No.** [•]
- 1.3 **Contract Date:** The date of the Contract is made effective as of [•]
- 1.4 **Commencement Date:** [•]
- 1.5 **Term:** [•] years from the Commencement Date. [In addition, the Corporation shall have the option, at its sole election, to extend the Term by one or more renewal periods of up to one (1) year each, with any such extension(s) not to exceed in the aggregate two (2) years]
- 1.6 **Maximum Contract Price:** \$[•]
- 1.7 **Project:** N.Y.C. Groceries Branding RFP
- 1.8 **Project Site:** Not Applicable
- 1.9 **Allowable Additional Costs:** Not Applicable
- 1.10 **Retainage:** Not Applicable
- 1.11 **Retainage Payment Date:** Not Applicable
- 1.12 **M/WBE Participation Goal:** [•]%

2. **Parties**

2.1 **The Corporation:** New York City Economic Development Corporation, a not-for-profit corporation, organized under the laws of the State of New York.

2.2 **Director:** [•]

2.3 **The Consultant:** [•], a New York [•], having an office at:

[•]

Federal Tax ID: #[•]

2.4 **Principal:** [•]

2.5 **Person in Charge:** [•]

3. **Notice Parties and Addresses**

3.1 **Notices to the Corporation:**

New York City Economic Development Corporation
One Liberty Plaza
New York, NY 10006
Attn: General Counsel

with a copy to:

New York City Economic Development Corporation
One Liberty Plaza
New York, NY 10006
Attn: [•]

3.2 **Notices to the Consultant:**

[•]

Attn: [•]

4. **Funding Source** Subject to any applicable withholding or offset rights of the Corporation pursuant to the terms of this Contract, the payments to be made to the Consultant by the Corporation pursuant to this Contract will be made from funds identified below and in accordance with the provisions of Appendices I, J and K. The Consultant agrees to comply with the provisions of each of such Appendices, as applicable.

- 4.1 **Type of Funds:** Programmatic Funds
- 4.2 **Funding Agencies:** N/A
- 4.3 **Inspectors:** N/A
- 4.4 **Applicable Requirements:** N/A
- 4.5 **Applicable Agreements:** N/A

This Contract may be executed in counterparts, all of which counterparts, when taken together, shall be deemed a fully executed instrument.

IN WITNESS WHEREOF, the parties hereto have caused this Contract to be duly executed as of the Contract Date hereinabove written.

**NEW YORK CITY ECONOMIC
DEVELOPMENT CORPORATION**

CONSULTANT

By: _____

Name: _____

Title: _____

By: _____

Name: _____

Title: _____

**NEW YORK CITY ECONOMIC DEVELOPMENT CORPORATION
N.Y.C GROCERIES BRANDING CONSULTANT
PROFESSIONAL SERVICES CONSULTANT CONTRACT
NYCEDC CONTRACT NO. [•]
PROJECT CODE NO. [•]**

**PART II
GENERAL TERMS AND CONDITIONS**

ARTICLE 1 PERFORMANCE OF SERVICES	1
ARTICLE 2 COMPENSATION	4
ARTICLE 3 SUSPENSION OR TERMINATION	5
ARTICLE 4 PERSONNEL AND SUBCONTRACTORS	8
ARTICLE 5 DOCUMENTS AND MATERIALS	10
ARTICLE 6 INDEMNIFICATION, CLAIMS AND INSURANCE	13
ARTICLE 7 REPRESENTATIONS AND WARRANTIES	17
ARTICLE 8 APPLICABLE LAWS, RULES AND REGULATIONS	18
ARTICLE 9 M/WBE REQUIREMENTS	21
ARTICLE 10 MISCELLANEOUS	26

**NEW YORK CITY ECONOMIC DEVELOPMENT CORPORATION
N.Y.C GROCERIES BRANDING CONSULTANT
PROFESSIONAL SERVICES CONSULTANT CONTRACT
NYCEDC CONTRACT NO. [•]
PROJECT CODE NO. [•]**

PART II

GENERAL TERMS AND CONDITIONS

The Corporation and the Consultant agree as follows:

ARTICLE 1

PERFORMANCE OF SERVICES

1.1 Services. The Corporation hereby retains and engages the Consultant and the Consultant agrees to perform the Services as described in **Appendix B** (Scope of Services), attached hereto.

1.2 Time for Performance of Services/Term/Delays and Force Majeure.

1.2.1 The Consultant shall commence the Services upon or promptly after the Commencement Date and shall complete the Services and each phase of the Services within the time or times stated for Final Completion as set forth in **Appendix B**, and in accordance with any directive given and Progress Schedule approved by the Corporation, unless this Contract is earlier terminated pursuant to Article 3 hereof.

1.2.2 This Contract shall be for the Term as set forth in Part I, Section 1.5 unless sooner terminated pursuant to Article 3 hereof.

1.2.3 If the Consultant has been delayed and as a result will be unable to complete performance fully and satisfactorily within the time fixed therefor, the Consultant may be granted an extension of time fixed for performance equal to the period the Consultant was actually and necessarily delayed upon submission of evidence of the causes of the delay, subject to the written approval of the Director in his or her sole discretion. The decision of the Director as to the granting of the extension and its length shall be binding upon the Consultant.

1.2.4 Subject to the Corporation's determination and approval, the Corporation may extend the time or times for performance of the Services where such performance has been substantially obstructed, hindered or delayed by reason of acts of Force Majeure. The Consultant shall have no claim against the Corporation or the City for any loss or damage sustained by the Consultant nor for any extra compensation in the form of an increase in the Maximum Contract Price, or otherwise, through such delay, hindrance or obstruction.

1.3 Complete Work and Timing and Sequence/Meetings. It is the intent of the parties that the provisions of this Contract shall not be construed so as to limit the Services, but that the Services shall include all acts necessary to fully and finally complete the work described in **Appendix B** hereof. The Consultant shall schedule and perform the Services in a manner so as to permit their completion diligently and expeditiously. The Principal, the Person in Charge and such other Representatives of the Consultant as may be required under the circumstances shall be available to meet with the Director or her or his designee as often as necessary to effectively perform the Services, and as often as may be specified in **Appendix B**.

1.4 Authority of Director/Performance of Services.

1.4.1 The Services to be performed by the Consultant shall at all times be subject to the review, direction and control of the Director, whose decision shall be final and binding upon the Consultant. The Director shall have the right to determine the amount, quality, acceptability and fitness of the Services and her or his approval shall be a condition precedent to the right of the Consultant to receive any compensation under this Contract. The Director shall act reasonably in exercising her or his authority under this Contract. The Director and any other person or agent duly authorized to act for and on behalf of the Corporation shall not, by virtue of such authority or action, be liable in any manner to the Consultant.

1.4.2 The Consultant shall perform all of the Services in a prudent and professional manner and in accordance with standards and practices as are customary for such Services in the New York City Metropolitan Statistical Area.

1.5 Changes to the Services.

1.5.1 The Consultant shall not make any changes in the Services without prior written authorization from the Director. The Consultant shall revise or correct any Work Product submitted in accordance with this Contract until accepted by the Director and accepted by all agencies whose approval is required by law, without additional compensation or time extension. Any changes to the performance of the Services or the Work Product which are necessary due to improper performance of the Services, a defect of design, unworkability of details or other fault or error of the Consultant shall be made by the Consultant, also without additional compensation or time extension.

1.5.2 The Director shall have the right to alter the Services, provided however, that if the Consultant believes that any work or services that it has been directed to perform as a result of such alteration is beyond the Scope of Services and constitutes Extra Work, the Consultant shall so Notify the Director within three (3) days of such directive. The Director shall determine whether such altered Services are (i) within the Scope of Services; or (ii) Extra Work requiring an amendment to the Scope of Services and the Contract. The Director's determination shall be final, binding and conclusive.

1.5.3 The Director reserves the right to reduce the Scope of Services under this Contract by Notice to the Consultant specifying the nature and extent of such reduction. The Consultant shall be compensated for all Services satisfactorily performed prior to the reduction and for Services satisfactorily performed thereafter. If said reduction results in a credit for the

Corporation, such credit shall be immediately due and owing to Corporation, and the Consultant shall either pay such credit to the Corporation or the Corporation may withhold the credit amount from any future payments by the Corporation to the Consultant, at the exclusive option of the Corporation.

1.6 Equipment.

1.6.1 The Consultant, at its own expense, shall secure all supplies, materials and equipment required to perform and complete the Services.

1.6.2 The Consultant, at its sole cost and expense, shall bear the risk of loss for any supplies, materials and equipment used to perform the Services whether such loss arises by reason of fire, theft, vandalism, negligence or any other cause whatsoever. Consultant, at its sole cost and expense, shall promptly replace or repair all such lost, stolen or damaged supplies, materials and equipment.

1.6.3 The Consultant, at its sole cost and expense, shall maintain all of its supplies, materials and equipment in good working and serviceable order so as to enable the Consultant to perform the Services in a first-class and professional manner.

1.6.4 The Consultant shall be solely responsible for the means and methods and the safety and protection of all its employees and shall assume all liability for injuries, including death, that may occur to such employees due to the act, omission, negligence, fault or default of the Consultant.

1.7 Services Subject to City Contract, Indemnification and Third Party Beneficiary. This Contract is a subcontract under the City Contract. The Consultant acknowledges that it has reviewed the City Contract and agrees to comply with the City Contract with respect to the Services and not to violate, or through its acts or failure to act cause the Corporation to violate, the City Contract. The Consultant agrees to defend, indemnify and hold harmless the Corporation from any claim, liability or judgment to which the Corporation may be subject because of any such action or failure to act. The City shall be a third party beneficiary of this Contract and shall have a direct cause of action against the Consultant in the event that any claim be made or any cause of action be brought against the Corporation or City or if the Consultant breaches this Contract.

1.8 Acts to be Performed by the Corporation. The Corporation shall perform the following acts in connection with this Contract:

1.8.1 The Corporation shall make available to the Consultant all relevant technical data (subject to the provisions of Part II, Section 5.3 herein) in regard to the Contract which is in the possession of the Corporation.

1.8.2 The Corporation shall designate a Project Manager to serve as a liaison between the Corporation and the Consultant.

ARTICLE 2

COMPENSATION

2.1 Payments.

2.1.1 Subject to, and in accordance with this Article 2, the Corporation shall pay to the Consultant, and the Consultant agrees to accept, in full consideration for the Services, and for all expenses of the Consultant in connection therewith, including Subcontractors' Costs and Allowable Additional Costs, an amount not to exceed the Maximum Contract Price, payable as provided for in this Section 2.1 and in Appendix C.

2.1.2 Requisitions shall be in a form reasonably acceptable to the Corporation and shall be supported by any appropriate or necessary documentation or other evidence relating to the amounts set forth in the Requisition, as the Corporation may reasonably require including, but not limited to invoices, receipts and vouchers from Subcontractors and suppliers, information related to M/WBEs required under Section 9.5 and, where applicable, the time sheets and/or certified payroll reports of the Consultant's staff and its Principal.

2.1.3 Each Requisition submitted to the Corporation by the Consultant shall constitute a representation that, except as specifically set forth in the Requisition, as of the date of the Requisition, all representations and warranties made by the Consultant in Article 7 are true, complete and accurate as if made as of the date of the submission of the Requisition.

2.1.4 The Director shall review the Requisitions and the Work Product. If, in her or his judgment, the Services have been satisfactorily performed in accordance with this Contract, the Director will approve the Requisition. All payments to the Consultant will be made in accordance with this Article 2.

2.1.5 Subject to Section 3.5, Final Payment will be due only upon Final Completion.

2.1.6 The Consultant, with the Director's prior approval, may exceed the Maximum Payment allocated to a particular Portion of the Services if the Consultant by Notice determines that the Maximum Payment initially allocated to the Portion is insufficient to adequately perform the Portion of the Services and if the Consultant demonstrates to the Director a savings with respect to another Portion of the Services which is at least equal to the amount of such excess. However, notwithstanding the above, in no event shall the Corporation pay the Consultant more than the Maximum Contract Price.

2.1.7 All Requisitions must be submitted to the Corporation's Accounts Payable Department.

2.2 Miscellaneous Payment Provisions.

2.2.1 In addition to its rights under Section 9.10, if the Corporation shall have reasonable grounds for believing that:

(i) the Consultant will be unable to perform the Services or any Portion thereof fully and satisfactorily in accordance with any Progress Schedule, or

(ii) a meritorious claim exists or will exist against the Corporation, the Consultant or the City arising out of the act, omission or negligence of the Consultant or the Consultant's breach of any provision of this Contract,

then the Corporation may withhold payment of any amount otherwise due and payable to the Consultant hereunder. Any amount so withheld may be retained by the Corporation for such period as it may deem advisable to protect the Corporation and the City against any loss and may, after Notice to the Consultant, be applied in satisfaction of any claim herein described.

2.2.2 The Corporation shall not be deemed to have released the Consultant from any claim or liability, or to have waived any cause of action arising from any breach of this Contract by virtue of making payments to the Consultant.

2.2.3 Upon acceptance by the Consultant of the Final Payment to be paid pursuant to this Contract, the Consultant agrees that it shall be deemed to have fully released the Corporation and the City from any and all claims, demands and causes of action whatsoever which the Consultant has or may have against the Corporation or the City in connection with this Contract and, upon the request of the Corporation, shall execute a release to such effect.

2.2.4 All payments to the Consultant under this Contract shall be subject to all applicable Legal Requirements.

2.3 Electronic Funds Transfers. All payments due under this Contract in excess of \$100,000 shall be made by Electronic Funds Transfer ("EFT"). Upon execution of this Contract, and in no event later than its submission of its first Requisition, the Consultant shall complete and submit to the Corporation the "EFT Vendor Payment Enrollment Form" annexed to Appendix C. The Consultant shall update such information to the extent necessary for EFT payments to be made. The Corporation shall not be obligated to make any payment in excess of \$100,000 unless such information is provided and shall be entitled to rely solely on the information provided by the Consultant. Payments to the Corporation shall be made by check unless the Corporation Notifies the Consultant to make payments by EFT.

ARTICLE 3

SUSPENSION OR TERMINATION

3.1 Delay, Postponement or Suspension of Work.

3.1.1 The Corporation shall have the right to delay, postpone or suspend the Services, or any Portion thereof, immediately or upon a specified date, for a period of not more than ninety (90) days, upon Notice to the Consultant, for any reason deemed by the Corporation to be in its interest. The Consultant and all of its Subcontractors and Representatives shall cease all Services, or any specified Portion thereof, immediately or as of the date specified in the Notice.

3.1.2 Any such delay, postponement or suspension shall not give rise to any cause of action for damages against the Corporation or the City, but the Term specified in Part I of this

Contract and the Consultant's time for performance of the Services shall be extended for the period of the delay, postponement or suspension.

3.1.3 In the event of any delays, postponements or suspensions, the Consultant shall resume the Services upon the date specified in the Notice or upon such other date as the Corporation may thereafter specify by Notice.

3.2 Termination for Convenience. The Corporation shall have the right to terminate the Services, or any Portion thereof, immediately or upon a specified date, upon Notice to the Consultant and for any reason deemed by the Corporation to be in its interest.

3.3 Defaults and Termination for Cause.

3.3.1 In addition to any other right that the Corporation may have, upon the occurrence of an Event of Default, the Corporation shall have the right to declare the Consultant in default and terminate this Contract, in whole or in part, for cause, by giving Notice to the Consultant of the cause and the date of such termination.

3.3.2 An Event of Default shall be deemed to have occurred if any of the following events has occurred, each an "Event of Default":

- (i) The Consultant fails to assign workers, order materials or enter into subcontracts in a manner sufficient to permit completion of the Services, or any Portion thereof, within the time limits of the Progress Schedule or in accordance with any Progress Schedule approved by the Corporation;
 - (ii) The Consultant fails to complete the Services, or any Portion thereof, within the time limits provided in this Contract or any Progress Schedule approved by the Corporation;
 - (iii) The Consultant materially violates any term, covenant or provision of this Contract;
 - (iv) The Consultant materially fails to comply with any Applicable Requirements or any Applicable Agreements;
 - (v) Any representation or warranty made by the Consultant in Article 7 or in any other Article in this Contract shall prove to be untrue or be breached;
 - (vi) The Consultant becomes insolvent, files for bankruptcy or is adjudged a debtor in possession;
 - (vii) The Consultant voluntarily, or by operation of law, assigns, transfers, conveys or otherwise disposes of its interest in this Contract or its right to receive funds hereunder without the prior written consent of the Corporation;
 - (viii) The Consultant fails to comply with the M/WBE Requirements in Article 9;
- or
- (ix) The Consultant or any of its officers, directors, partners, members, five (5%) percent shareholders, principals or other persons substantially involved in its activities, commits any of the acts or omissions specified as the grounds for debarment in the City's *Procurement Policy Board Rules*.

3.4 Effects of Termination for Convenience or for Cause.

3.4.1 The Contract, or such portion of the Contract described in the Notice of termination, shall terminate as of the termination date set forth in the Notice given pursuant to Section 3.3.1, or immediately if no date is specified.

3.4.2 Upon receipt of a Notice of termination for cause or for convenience, the Consultant shall cease any or all Services, immediately or on the date specified, in accordance with the terms of the Notice.

3.4.3 Termination, whether for convenience or for cause, shall not give rise to any cause of action for damages against the Corporation or the City.

3.4.4 Within ten (10) days after the effective date of termination, the Consultant shall surrender and turn over to the Corporation all Work Product and any other materials related to this Contract requested by the Corporation including, without limitation, all materials, equipment and supplies purchased by the Consultant on behalf of the Corporation in connection with this Contract.

3.5 Payment Upon Termination.

3.5.1 Upon termination with or without cause, the Consultant shall promptly present to the Corporation a verified statement of all costs actually incurred prior to the date of termination, together with all documents in the Consultant's possession related thereto that the Corporation may demand in order to verify such statement of costs including, without limitation, canceled checks, subcontracts, and paid receipts and bills from Subcontractors. The Corporation will review the statement of costs and review or audit any supporting documentation provided by or in the Consultant's possession. The Corporation will Notify the Consultant of the results of such review or audit and the amount approved for payment.

3.5.2 If the termination was without cause, the Consultant shall receive such equitable compensation for such Services as shall, in the judgment of Director, have been satisfactorily performed by the Consultant up to the date of the termination, such compensation to be fixed by the Corporation after consultation with the Consultant, subject to any rights of audit provided herein. Such payment will be processed by the Corporation after Consultant provides all information and documentation required hereunder. Such payment shall constitute full and Final Payment to the Consultant.

3.5.3 If the termination was for cause, the Consultant shall receive such equitable compensation for such Services as shall, in the judgment of Director, have been satisfactorily performed by the Consultant up to the date of the termination, such compensation to be fixed by the Corporation, subject to any rights of audit provided herein, and subject to set-off by the Corporation for any additional expenses the Corporation incurs to complete the Project satisfactorily, including the expenses of engaging another consultant and the costs set forth in Section 9.10(ii). The sum of (i) such additional expenses incurred to the Corporation for the completion of the Project, and (ii) payments made to the Consultant prior to the termination of the Contract shall hereafter be referred to as the "Contract Completion Costs".

(i) If the Contract Completion Costs exceed the Maximum Contract Price, Consultant shall pay such difference to the Corporation, as described in Section 3.5.4 below.

(ii) If the Contract Completion Costs are less than the Maximum Contract Price, provided that the Consultant has provided all information and documentation required by this Section, the Corporation will pay to the Consultant, an amount equal to the lesser of (a) the difference between the Maximum Contract Price and the Contract Completion Costs, or (b) such amount, when added to sums previously paid to Consultant, equitably compensates Consultant for Services satisfactorily performed up to the date of termination. Such payment will be made as further described in Section 3.5.4 below.

3.5.4 If the termination was for cause, the Corporation will, upon full completion of the Project, deliver a written notice to the Consultant advising the Consultant that the Project has been completed and setting forth the Contract Completion Costs. If the Contract Completion Costs exceed the Maximum Contract Price, the Consultant shall promptly pay such difference to the Corporation upon receipt of such notice. If the Contract Completion Costs are less than the Maximum Contract Price, then, subject to (i) the Consultant's providing to the Corporation all information and documentation required by this Section, and (ii) any other applicable provisions of this Contract including, without limitation, Sections 3.5.5 and 3.5.6 hereof, the Corporation will pay the Consultant the amount described in Section 3.5.3(ii). Such payment shall constitute full and Final Payment to the Consultant.

3.5.5 The Corporation need not wait until the completion of the Services to seek the enforcement of its rights against the Consultant if there has been a termination for cause, but no monies shall be due or payable to the Consultant terminated for cause until the Services are completed.

3.5.6 The provisions of this Section 3.5 shall be in addition to any other rights the Corporation may have under this Contract, any Applicable Requirement, any Applicable Agreement, or otherwise, in law or in equity.

3.6 No Release. Termination of this Contract, whether by expiration of its Term or otherwise, shall not release the Consultant from any liability to the Corporation or from the Consultant's indemnification and other obligations under this Contract that have not been specifically terminated pursuant to this Article of the Contract.

ARTICLE 4

PERSONNEL AND SUBCONTRACTORS

4.1 Personnel.

4.1.1 The Consultant shall employ at its own expense all personnel and retain all Subcontractors as may be required to perform the Services, and shall be solely responsible for their work, compensation, direction and conduct during the performance of this Contract. The personnel of the Consultant and any Subcontractor shall cooperate fully with the personnel of the Corporation including, without limitation, the Director, and, in the event any personnel of the Consultant or any Subcontractor fails to cooperate, the Consultant shall relieve them of their duties of performance under this Contract.

4.1.2 The Consultant shall submit to the Director, prior to performance of Services by such personnel, resumes of the Consultant's personnel and those of its Subcontractors' personnel who will perform the Services. The experience and training of such personnel is a material inducement for the Corporation to enter into this Contract and make payment for the Services. The Consultant and its Subcontractors are expected to use such personnel to perform the Services. If the Consultant or a Subcontractor proposes to substitute any other personnel for those heretofore identified, it shall assign persons with equivalent or better experience and training and shall submit the resumes of such proposed substitute personnel to the Director and obtain the Director's prior approval of the substitution. Notwithstanding anything contained herein to the contrary, all personnel furnished by the Consultant as required under this Contract shall be employees of the Consultant or approved Subcontractors of the Consultant and not employees or subcontractors of the Corporation or the City.

4.2 Subcontractors.

4.2.1 The Consultant is authorized to enter into subcontracts for specialized professional services as required for performance of the Services subject to the prior written approval of the Director as to the Subcontractor, the scope of services, compensation, and the Principal or other member(s) of the Consultant's staff responsible for supervising the performance of the Subcontractor's activities. The Consultant, and not the Corporation, is responsible for the Subcontractor's work, acts and omissions.

4.2.2 The Consultant shall pay any Subcontractors approved by the Corporation for work that has been satisfactorily performed no later than thirty (30) days from the date of Consultant's receipt of payments from the Corporation.

4.2.3 The Consultant is solely responsible for the payments to the Subcontractors. Upon receipt of evidence of Consultant default hereunder with respect to its obligations to make payments to its Subcontractors, the Corporation reserves the right, after three (3) calendar days prior Notice, to retain any money due the Consultant and pay directly for labor, materials, equipment, Services and all other obligations of the Consultant and to deduct the amount of any such direct payments from any payments or amounts then due or thereafter to become due to the Consultant.

4.2.4 The Consultant shall inform all Subcontractors fully of the terms and conditions of this Contract. All subcontracts shall provide that:

- (i) there is no privity of contract between the Subcontractor and the Corporation or the City;
- (ii) neither the Corporation nor the City will incur any liability by virtue of any act, omission, negligence, or obligation of the Subcontractor or the Consultant;
- (iii) the Subcontractor shall indemnify, defend and hold harmless the Corporation and the City, their agents, employees, members, directors, officials and officers against any and all claims, judgments or liabilities to which they may be subject (including, without limitation, any and all claims for injuries to persons (including death) and damage to property) because of any negligence or any fault or default of the Subcontractor, its agents, employees or subcontractors or the breach of the Subcontractor's obligations under the subcontract;

- (iv) the Subcontractor's Requisitions shall conform to the same requirements and include the representations, warranties and agreements set forth in Sections 2.1.2 and 2.1 3;
- (v) the "Events of Default" set forth in Section 3.3.2 as grounds for termination for cause shall be "Events of Default" and grounds for termination of the Subcontractor for cause;
- (vi) the subcontract may be assigned without the written consent of the Subcontractor to the City, NYCEDC or any other corporation, agency or instrumentality having authority to accept the assignment; and
- (vii) all work and services performed under the subcontract shall strictly comply with the requirements of this Contract.

If the Consultant fails to include the provisions set forth in this Section 4.2.4 in any subcontract, the Consultant hereby agrees to indemnify, defend and hold harmless the Corporation and the City and their Representatives against any and all claims, damages, awards, judgments, liabilities, expenses, fines, penalties, costs and/or fees incurred by or imposed upon the Corporation and the City and their Representatives, including reasonable fees, as a result of said failure.

4.2.5 The Consultant shall provide the Corporation with a list of all Subcontractors employed for the performance of the Services whose subcontract amount totals \$25,000 or more. The Consultant will furnish each such Subcontractor whose Subcontract amount totals less than \$100,000 with the Corporation's internal qualification and background investigation forms. The Consultant will furnish each such subcontractor whose subcontract amount totals \$100,000 or more with the Mayor's Office of Contracts Investigations Forms. These forms will be provided by the Corporation to the Consultant. The Consultant shall cause each such Subcontractor to fill out and complete the forms in a timely fashion but in no event later than the commencement of the Services performed by such Subcontractor pursuant to its subcontract.

4.3 Person in Charge. The Consultant has designated a Person-in-Charge who will have primary responsibility to perform and/or supervise and coordinate the performance of the Services. Substitution of said person shall be made only with the prior written approval of the Director. Failure to make such person(s) available to the extent necessary to perform the Services skillfully and promptly shall be a material violation of the terms of this Contract.

ARTICLE 5

DOCUMENTS AND MATERIALS

5.1 Approval. All Work Product to be prepared or furnished by the Consultant pursuant to this Contract or publicizing the work of the Consultant hereunder must be:

- (i) approved in writing by the Director before any Work Product or publication as to the work of the Consultant shall be considered accepted and before any distribution;
- (ii) revised by the Consultant in accordance with the directions of the Director prior to approval; and
- (iii) prepared so as not to violate any provisions of law including, without limitation, the City Charter and the Administrative Code of the City.

5.2 Work Product.

5.2.1 All Work Product is the exclusive property of the Corporation. The Corporation may use any Work Product prepared by the Consultant in such manner, for such purposes, and as often as the Corporation may deem advisable, in whole, in part or in modified form, in all formats now known or hereafter to become known, without further employment of or additional compensation to the Consultant.

5.2.2 The Consultant shall not use, transmit, display, publish or otherwise license such Work Product without the Corporation's prior written consent.

5.2.3 The Work Product shall be considered "work-made-for-hire" within the meaning and purview of Section 101 of the United States Copyright Act, 17 U.S.C. § 101, and the Corporation is the copyright owner thereof and of all aspects, elements and components thereof in which copyright protection might subsist. To the extent that the Work Product does not qualify as a "work-made-for-hire", the Consultant hereby irrevocably transfers, assigns and conveys exclusive copyright ownership in and to the Work Product to the Corporation, free and clear of any liens, claims or other encumbrances. The Consultant shall retain no copyright or other intellectual property interest in the Work Product.

5.2.4 To the extent that the Work Product does not qualify as a "work-made-for hire", Consultant acknowledges the existence, if any, of its statutory moral rights as those rights are described in 17 U.S.C. § 106A(a), and knowingly executes this Contract on the following terms: (i) this waiver applies to the Work Product and to any promotional materials connected with the Work Product; (ii) the Consultant hereby expressly and forever waives any and all rights under 17 U.S.C. § 106A, and any rights arising under U.S. federal or state law or under the laws of any other country that conveys rights of the same nature as those conveyed by 17 U.S.C. § 106A, or any other type of moral right or *droit moral*.

5.2.5 The Consultant represents and warrants that, except for material which is in the public domain and non-original material that meets the requirements of §5.2.6, the Work Product

- (i) shall be wholly original material not published elsewhere;
- (ii) shall not violate any copyright, trademark or other applicable law; and
- (iii) shall not, to the best of Consultant's knowledge, constitute a defamation or invasion of the right of privacy or publicity, or an infringement of any kind, of any rights of any third party.

5.2.6 The Consultant represents and warrants that to the extent that the Work Product incorporates non-original material, the Consultant shall obtain and provide the Corporation with copies of all necessary permissions and clearances, in writing, for the use of such non-original material under this Contract. Since some licenses for materials may be for a limited duration, the Consultant shall provide and/or specify the following to the Corporation with respect to all non-original materials included in its Work Product:

- (i) all information as to any durational limitations on use;

(ii) any requirement that a notice be displayed in connection with display, including the specific owner of the rights to be credited, and any limitation on the use under the Consultant's license; and

(iii) a statement certified by the Principal verifying the foregoing in the form annexed hereto as Appendix D.

Consultant will update the foregoing information and promptly provide such updates to the Corporation during the Contract Term.

5.2.7 The Consultant acknowledges that the Corporation or the City may, in their sole discretion, register copyright in the Work Product with the U.S. Copyright Office or any other government agency authorized to grant registrations to copyright. The Consultant will cooperate in this effort, and agrees to provide any further documentation necessary to accomplish this.

5.2.8 The Consultant agrees that the Corporation and the City may use the Consultant's name and the names, biographies and likenesses of its members, in advertising and promotion related to the Work Product, and in any and all ancillary products related to the Services regardless of the format in which such use occurs.

5.2.9 Prior to acceptance of any Work Product by the Director, upon the Director's request and within a reasonable time following delivery of the Work Product, the Consultant shall submit revised Work Product incorporating any revisions, changes or alterations reasonably requested by the Director. If the original Work Product or the revised Work Product is not acceptable to the Director, the Corporation shall have the right to use the Work Product, to prepare or finalize the Work Product or to commission a third party to do so without further employment of or compensation to the Consultant.

5.2.10 The Consultant acknowledges that the decision to accept the Work Product for use, incorporation, transmission, display or publication is within the sole discretion of the Director.

5.2.11 Consultant agrees that it will cooperate in providing any other documentation necessary to effectuate the intent of this Section of the Contract.

5.2.12 The Consultant shall not make any unauthorized use of copyrighted, trademarked or other protected materials or intellectual property and agrees to defend, indemnify and hold harmless the Corporation and the City and their respective officers, officials, agents, members, directors, and employees against any damage or liability arising out of the Consultant's infringement or unauthorized use of any such material or property.

5.3 Confidential Information.

5.3.1 The Consultant shall hold all Confidential Information provided by the Corporation in the strictest confidence. Consultant agrees to:

- (i) use the Confidential Information solely for evaluation and the performance of the Services under this Contract;
- (ii) not disclose the Confidential Information outside of its Subcontractors who have agreed in advance in writing to be bound by the terms of this Section 5.3 and its employees and to limit dissemination to only those Subcontractors and employees who have a need to know it in order to accomplish the Services;
- (iii) execute any confidentiality agreements required by any governmental or other entities or individuals which provide any information, records, data, materials, documents or electronic files to Consultant for use in performance of the Services; and
- (iv) not disclose the Confidential Information for three (3) years following Final Completion.

5.3.2 Consultant represents that it has adequate safeguards and procedures to protect the confidentiality of records and information and to limit dissemination only to authorized employees as necessary for the performance of the Services. All Confidential Information provided to Consultant shall remain the property of the Corporation.

5.3.3 Consultant agrees that money damages would not be a sufficient remedy in the event of any breach of this Section 5.3 and that, in addition to all other remedies which may be available, the Corporation shall be entitled to specific performance and injunctive or other equitable relief as a remedy for any such breach. Consultant shall defend, hold harmless and indemnify the Corporation for any and all claims, losses, expenses and/or damages arising out of breach of this Section 5.3 or unauthorized use of the Confidential Information.

ARTICLE 6

INDEMNIFICATION, CLAIMS AND INSURANCE

6.1 Indemnification of the Corporation and the City.

6.1.1 The Consultant shall indemnify, defend and hold harmless the Corporation and the City, their agents and employees from any and all claims, judgments or liabilities to which they may be subject because of any negligence or any fault or default of the Consultant, its agents, employees or subcontractors or the breach of the Consultant's obligations under the Contract.

6.1.2 The Consultant shall be solely responsible for all injuries to persons, including death, or damage to property sustained during its operations and work under this Contract resulting from any negligence, fault or default of the Consultant or of its employees, authorized agents, servants, independent contractors or subcontractors retained by the Consultant pursuant to this Contract. The Consultant agrees to indemnify, defend and hold the Corporation and the City harmless from any liability upon any and all claims for injuries to persons (including death) and damage to property on account of negligence, fault or default of the Consultant, its employees, authorized agents, servants, independent contractors and subcontractors retained by the Consultant.

6.2 Claims or Actions Against the Corporation.

6.2.1 The Consultant shall look solely to the funds appropriated by the Corporation for this Contract for the satisfaction of any claim or cause of action the Consultant may have against the Corporation in connection with this Contract or the failure of the Corporation to perform any of its obligations hereunder. In no event shall the Corporation's aggregate liability hereunder in connection herewith or related to the performance of the Services exceed the Maximum Contract Price.

6.2.2 Upon acceptance by the Consultant of the Final Payment to be paid pursuant to this Contract, the Consultant agrees that it shall be deemed to have released the Corporation from any and all claims, causes of action, and liability to the Consultant, its Representatives, successors and assigns, in connection with this Contract or the performance of the Services.

6.2.3 No member, director, employee, servant, officer, agent or other person authorized to act on behalf of the Corporation shall have any personal liability in connection with this Contract or any failure of the Corporation to perform its obligations hereunder.

6.2.4 No person or entity shall have any right against the Director or any member, director, employee, servant or officer, agent of the City or the Corporation or other person authorized to act on their behalf or any claim against the City or the Corporation by reason of the failure or refusal to withhold money pursuant to Section 2.2.1 hereof.

6.2.5 The Consultant agrees that no cause of action against the Corporation in connection with this Contract or the Services shall lie or be maintained by the Consultant, its successors or assigns unless such action is commenced within six months after (i) the termination of this Contract, or (ii) the accrual of the cause of action, whichever is earlier.

6.2.6 If any claim is made or any action brought relating to this Contract or the Services, whether or not the Consultant is a party, the Consultant shall diligently render to the Corporation any and all assistance that the Corporation may require of the Consultant, without compensation.

6.2.7 The provisions of this Section shall not waive, limit or in any way prejudice any other right of the Corporation or the City.

6.3 Insurance.

6.3.1 At all times during the performance of the work or Services in connection with this Contract or for such other time periods as the Corporation may require, the Consultant, at its sole cost and expense, shall purchase and maintain the insurance described in this Section 6.3 and the annexed Appendix E, as may be applicable and as may be required by the Corporation. Subcontractors are subject to similar requirements in this Section 6.3 and the annexed Appendix E, except where noted. All limits required are minimum limits and the Corporation, the City nor the Additional Insureds represent that these minimum limits will be sufficient to address all claims that may arise, but this does not alleviate the Consultant from its indemnity and hold harmless obligations.

Consultant shall purchase and maintain insurance with insurance companies that:

- (i) are acceptable to the Corporation;
- (ii) are rated A-:VII or better by A.M. Best Company; and
- (iii) are authorized to issue such insurance by the New York State Department of Insurance.

6.3.2 The insurance policies purchased and maintained by the Consultant shall:

- (i) be in form and substance satisfactory to the Corporation;
- (ii) have the minimum policy limits set forth in Appendix E;
- (iii) list all individuals and entities identified in Appendix E as Additional Insureds except in the case of any workers' compensation, cyber and media liability policies required to be maintained hereunder;
- (iv) include a waiver of the right of subrogation with respect to all Additional Insureds named therein as well as the required Workers' Compensation coverage; and
- (v) contain the provisions set forth in Appendix E.

6.3.3 Coverage for the individuals and entities identified in Appendix E as Additional Insureds shall be written into those policies set forth in Section 6.3.3 above as an endorsement at least as broad as ISO Forms CG 20 26 or CG 20 33.

6.3.4 The Consultant shall make and maintain timely premium payments for all policies required hereunder.

6.3.5 The Consultant shall require that each of its Subcontractors, prior to the commencement of their work, purchase and maintain, or be covered by, at no cost or expense to the Corporation or the City, the same types and minimum limits of insurance and meet all of the same requirements as required of the Consultant as set forth in this Article 6 and Appendix E, which shall also entail including the Additional Insureds as additional insureds without a privity of contract requirement. The Consultant hereby covenants and warrants that its Subcontractors shall purchase and maintain the policies required by this Section in the amounts and for the periods required by this Section.

6.3.6 Prior to the commencement of the Services the Consultant shall forward to the Corporation's Contract Administration and Procurement Department at least three (3) certificates of insurance, endorsements or other documents as may be reasonably requested, for each policy required for compliance with this Contract, for itself and its Subcontractors substantially as set forth in Appendix E. The Consultant shall also provide a certificate of insurance to each of the Additional Insureds with a copy of any endorsements providing coverage to the Additional Insureds as required in this Section 6.3. For such forms that include a place to designate the certificate holder, the certificate holder shall be listed as: New York City Economic Development Corporation, Attn: Contracts, One Liberty Plaza, 14th Floor, New York, New York 10006.

6.3.7 As required by N.Y. Workers' Compensation Law §§ 57 and 220(8), the Consultant shall submit proof of workers' compensation insurance, disability benefits insurance, and the payment of family leave benefits (or proof of a legal exemption) to the Corporation in a form acceptable to the New York State Workers' Compensation Board. ACORD forms are not acceptable proof of such insurance. The following forms are acceptable:

WORKERS' COMPENSATION

6.3.7.1 Form C-105.2, Certificate of Workers' Compensation Insurance;

6.3.7.2 Form U-26.3, State Insurance Fund Certificate of Workers' Compensation Insurance;

6.3.7.3 Form SI-12, Certificate of Workers' Compensation Self-Insurance;

6.3.7.4 Form GSI-105.2, Certificate of Participation in Worker's Compensation Group Self-Insurance;

DISABILITY BENEFITS

6.3.7.5 Form DB-120.1, Certificate of Disability Benefits Insurance;

6.3.7.6 Form DB-155, Certificate of Disability Benefits Self-Insurance;

6.3.7.7 Form CE-200 – Affidavit of Exemption;

6.3.7.8 Other forms approved by the New York State Workers' Compensation Board;

The Consultant shall provide the Corporation and the Additional Insureds with written confirmation of the renewal of any policy required hereunder no less than five (5) days prior to the expiration of any such policy.

6.3.8 Unless otherwise agreed to in writing by the Corporation, the types of insurance to be purchased and maintained by the Consultant and its Subcontractors are as follows:

(i) Workers' Compensation, Disability Benefits, and Employer's Liability Insurance. The Consultant shall purchase and maintain and shall require each of its Subcontractors to purchase and maintain workers' compensation, disability benefits insurance in statutory amounts, and employer's liability insurance in the amounts set forth in Appendix E, for all of its employees engaged in the Services. The failure of the Consultant to comply with this Section 6.3.9(i) shall make this Contract voidable at the option of the Corporation.

(ii) Commercial General Liability. The Consultant shall purchase and shall require each of its Subcontractors and maintain commercial general liability insurance to protect the Corporation, the City and the Additional Insureds, the Consultant and its Subcontractors against any and all claims for property damage, bodily injury, including death, and personal injury and advertising injury, arising out of the Services performed by the Consultant and its Subcontractors, and any work incidental thereto. The commercial general liability insurance policy must provide protection for ongoing operations and also include products and completed operations coverage. The policy must be on a per occurrence and an aggregate basis, where the aggregate is applied on a per location basis. The commercial general liability policy shall be in a form at least as

broad in coverage as the most current ISO Form CG 00 01. The additional insured protection must be as broad as coverage that would be afforded through use of ISO Forms CG 20 26 or CG 20 33. The liability policy(ies) must include cross-liability coverage providing severability of interests so that, except with respect to the limits of insurance, and any rights or duties specifically assigned to the first named insured, coverage will respond as if separate policies were in force for each insured. If at any time the commercial general liability policy should be cancelled, terminated, or modified so that the insurance is not in effect as above required, then the Consultant shall suspend performance of the Services if the Corporation shall so direct. If the Contract is so suspended, no extension of time shall be due on account thereof. If the Contract is not suspended, whether or not because of omission of the Corporation to order suspension, then the Corporation may, at its sole option, obtain insurance affording coverage equal to that required hereunder, the cost of such insurance to be payable by the Consultant to the Corporation.

(iii) Automobile Liability Insurance. If the Consultant utilizes or operates any autos in connection with the work or Services provided under this Contract, then the Consultant shall purchase and maintain automobile liability insurance covering all automobiles whether owned, non-owned, leased, hired and/or hired automobiles.

(iv) Umbrella/Excess Liability Coverage. If the Consultant purchases or maintains umbrella/excess liability insurance, such insurance should specifically schedule the Consultant's commercial general liability, comprehensive automobile liability and employer's liability as primary coverages, to protect the Corporation, the City, the Additional Insureds, the Consultant and its Subcontractors from any and all claims in excess of the underlying policy limits for such primary coverages. The certificate of insurance must indicate that such insurance afforded by this Section 6.3.9(iv) is on a "per occurrence" basis. The policies must be on a true follow-form basis, and limits between the primary, umbrella and/or excess liability policies are exhausted on a vertical basis.

(v) Media Liability Insurance. The policy shall include coverage for defamation, invasion of privacy, copyright/trademark/title/slogan/misappropriation/plagiarism, breach of a written or oral hold harmless or indemnification agreement; and include coverage for the acquisition and gathering of matter and actual publication, broadcast or any other form of dissemination; the insured acts of independent contractors/freelancers furnishing matter or services on behalf of Consultant; and contractual liability arising from an insured event. The Consultant shall maintain minimum limits as designated in Appendix E.

(vi) If applicable, any additional policies as may be described in Appendix E.

6.3.9 As a condition precedent to payment of any amounts owing to the Consultant by the Corporation, the Consultant shall, unless otherwise expressly agreed to in writing by the Corporation, provide to the Corporation the certificates of insurance required under this Contract

and shall on demand provide true copies of policies and endorsements to policies showing compliance with the insurance requirements set forth in this Article 6 and Appendix E.

6.3.10 The policies to be maintained by the Consultant hereunder that are subject to the Additional Insured requirements set forth in Section 6.3.3 (iii) above shall constitute the primary coverage for claims arising out of this Contract, and shall state that insurance, if any, carried by the Corporation, the City or the Additional Insureds will not be called upon to contribute to a loss that would otherwise be paid by the Consultant's insurer. The Consultant shall comply with the provisions of all policies required pursuant to this Contract, and shall give the insurer, the Corporation, the City and the Additional Insureds due and timely Notice of all claims, accidents and losses promptly upon its acquiring knowledge of the same.

6.3.11 The insurance provisions of this Article 6 shall be in addition to any rights that the Corporation, the City and the Additional Insureds may have under any hold harmless and indemnification provisions of this Contract and any other right provided by this Contract or by law. The Consultant shall not violate or permit to be violated any term or condition of the policies.

6.3.12 In addition, the Commercial General Liability Umbrella and/or Excess Liability Coverage policies must provide that (i) the Additional Insured protection afforded under the Consultant's policies shall be primary and not on an excess or contributing basis with any policies which may be available to the Corporation, and (ii) that the Consultant's policies, primary and excess, must be exhausted before implicating any Corporation policy available.

ARTICLE 7

REPRESENTATIONS AND WARRANTIES

The Consultant represents and warrants that:

7.1 The Consultant is duly organized, validly existing and in good standing under the laws of its jurisdiction of formation, and has all requisite power and authority to authorize, execute, deliver and perform this Contract in accordance with its terms. The Consultant is authorized to do business in the City of New York.

7.2 The authorization, execution and delivery of this Contract, and compliance with the provisions hereof, do not and will not conflict with or constitute a violation of or default under any statute, indenture, mortgage, deed of trust or other agreement or instrument to which the Consultant is bound, or, to the knowledge of the Consultant, any order, rule or regulation of any court or governmental agency or body having jurisdiction over the Consultant or any of its activities or properties.

7.3 The Consultant has not been asked to pay, and has neither offered to pay, nor paid, any illegal consideration, whether monetary or otherwise, in connection with the procurement of this Contract.

7.4 The Consultant has not employed any person to solicit or procure this Contract, and has not made and shall not make, except to full-time employees of the Consultant, any payment or any agreement for the payment of any commission, percentage, brokerage, contingent fee or any other compensation in connection with the procurement of this Contract.

7.5 The Consultant has not acquired nor will it acquire any interest of any nature, direct or indirect (including any interest in land in an area related to the Services or any interest in any corporation, partnership, or other entity with any such interest), which would conflict in any manner or degree with the performance of the Services. The Consultant further represents and covenants that in the performance of this Contract no person having any such conflicting interest shall be employed by the Consultant.

7.6 The Consultant is not in arrears to the City upon any debt, contract or taxes and is not a defaulter, as surety or otherwise, upon any obligation to the City, and has not been declared not responsible, or disqualified, by any agency of the City, nor is there any proceeding pending relating to the responsibility or qualification of the Consultant to receive public contracts. The Consultant represents that it has paid all applicable New York City income, excise and other taxes for all years it has conducted business activities in New York City.

7.7 All questionnaires and/or disclosure forms delivered by the Consultant and its Representatives to the Corporation to date are, to the best of the Consultant's knowledge, true and correct in all material respects; no material change has occurred in the circumstances of the Consultant, or any of its principals or affiliated persons or entities since the respective dates upon which such disclosure forms were executed that would otherwise require disclosure on such forms; and such disclosure forms do not contain any untrue statement of a material fact or omit to state a material fact necessary in order to make any statement contained in such form not misleading.

ARTICLE 8

APPLICABLE LAWS, RULES AND REGULATIONS

8.1 New York Law Governs; New York Courts. The Contract shall be governed by and construed in accordance with the laws of the State of New York. Any and all claims asserted by or against the Corporation arising under this Contract or related hereto shall be heard and determined either in the Federal Courts, located in the City or in the New York State Courts located in the City and County of New York. To effect this agreement and intent, the Consultant agrees as follows:

8.1.1 If the Corporation initiates any action against the Consultant in Federal Court or in New York State Court, service of process may be made on the Consultant in person, wherever the Consultant may be found, or by registered mail addressed to the Consultant at its address as set forth in this Contract, or to such other address as the Consultant shall have provided to the Corporation in writing.

8.1.2 With respect to any action between the Corporation and the Consultant in New York State Court, the Consultant hereby expressly waives and relinquishes any rights it might

otherwise have (i) to move to dismiss on grounds of forum non conveniens, and (ii) to move for a change of venue to a New York State Court outside New York County.

8.1.3 With respect to any action between the Corporation and the Consultant in Federal Court located in the City, the Consultant expressly waives and relinquishes any right it might otherwise have to move to transfer the action to a Federal Court outside the City.

8.1.4 If the Consultant commences any action against the Corporation in a court located other than in the City and State of New York, then, upon request of the Corporation, the Consultant shall either consent to a transfer of the action to a court of competent jurisdiction located in the City and State of New York or, if the court where the action is pending will not or cannot transfer the action, the Consultant shall consent to dismiss such action without prejudice and may thereafter reinstitute the action in a court of competent jurisdiction in the City.

8.2 Modification Required by Law. The parties agree that each and every provision of federal or state or local law, rule, regulation or order, required to be inserted in this Contract, is deemed by this reference to be so inserted in its correct form, and upon the application of either party, this Contract shall be amended by the express insertion of any such provision not so inserted or so inserted incorrectly so as to comply strictly with the law, without prejudice to the rights of either party.

8.3 Compliance with the Law. The Consultant agrees that all acts to be performed by it in connection with this Contract shall be performed in strict conformity with all Legal Requirements, including without limitation, Applicable Requirements and Applicable Agreements. Failure by the Consultant to abide by such Legal Requirements shall be a material default under this Contract.

8.4 Equal Employment Opportunity/Employment Reports.

8.4.1 The Consultant shall comply with the applicable provisions of the Equal Employment and Affirmative Action Compliance for Non-Construction Contracts Addendum (the "Executive Order No. 50 (1980) Supply and Service Rider" or "E.O. 50") attached hereto as Appendix F and made a part hereof. Appendix F shall be attached to and made a part of any subcontract entered into by the Consultant pursuant to this Contract that exceeds \$100,000.

8.4.2 The Consultant covenants that it shall complete and submit and shall require all Subcontractors to complete and submit Employment Reports (as required by E.O. 50) to the Corporation which can be found at www.nycedc.com in the section identified in Appendix G. If the Consultant cannot access or download these forms, the Corporation may, upon request, send the Consultant the required forms.

8.4.3 The Consultant and any subcontractor that provide any on-site construction activity shall complete and submit the Payroll Report to the Corporation in the form annexed to this Contract as Appendix C.

8.4.4 The Consultant shall give consideration to employing City residents who are economically disadvantaged or are eligible under any applicable Legal Requirements including, without limitation, the Workforce Investment Act of 1998, and who have qualifications and

skills commensurate with the requirements for the position available. To the greatest extent feasible, the Consultant shall give opportunities for training and employment to lower income persons in the Project area.

8.4.5 The provisions of this Section 8.4 shall be deemed supplementary to, and not in lieu of, or in substitution for, the applicable provisions of the New York State Labor Law relating to non-discrimination, and other applicable Legal Requirements.

8.5 Minimum Wages. Except for any employees whose prevailing wage is required to be fixed pursuant to Section 220, et seq. and Section 230, et seq. of the New York State Labor Law, which employees shall be paid such prevailing wage, all persons employed by the Consultant or any subcontractor in the manufacture or furnishing of the supplies, materials, or equipment, or the furnishing of work, labor or services, used in the performance of this Contract, shall be paid, without subsequent deduction or rebate unless expressly authorized by law, not less than the minimum hourly rate required by law, unless a higher amount is required pursuant to any other provision of this Contract.

8.6 No Tropical Hardwoods. Tropical hardwoods, as defined in Section 165 of the New York State Finance Law, shall not be used in the performance of this Contract except as expressly permitted by the foregoing provision of law.

8.7 Sales and Use Tax.

8.7.1 The Consultant acknowledges that the Corporation and the City are exempt from sales and use taxes imposed by Article 28 of the New York State Tax Law for purchases of tangible personal property, to the extent that such property is used to alter, maintain or improve, and becomes an integral component part of real property. This exemption does not apply to tools, machinery, equipment or other property leased by the Corporation's contractors and subcontractors or to supplies, materials or other property that are consumed in the construction or for any reason not incorporated into real property.

8.7.2 The Consultant shall inform its Subcontractors of this exemption and shall advise its Subcontractors to exclude sales and use taxes from their bids, as applicable.

8.8 Whistleblowers.

8.8.1 In accordance with Section 12-113 of the New York City Administrative Code (the "Administrative Code"),

8.8.1.1 The Consultant shall not take an adverse personnel action with respect to an officer or employee in retaliation for such officer or employee making a report of information concerning conduct which such officer or employee knows or reasonably believes to involve corruption, criminal activity, conflict of interest, gross mismanagement or abuse of authority by any officer or employee of the Consultant or any of its Subcontractors to (i) the Corporation, (ii) the City's Department of Investigation, (iii) a member of the New York City Council, the City's Public Advocate or the Comptroller, or (iv) the City Chief Procurement Officer, DSBS Chief Contracting Officer ("DSBS ACCO") or DSBS Commissioner.

8.8.1.2 If any of the Consultant's officers or employees believes that s/he or has been the subject of an adverse personnel action in violation of paragraph 8.8.1.1 above, s/he shall be entitled to bring a cause of action against the Consultant to recover all relief necessary to make him or her whole. Such relief may include but is not limited to: (i) an injunction to restrain continued retaliation, (ii) reinstatement to the position such employee would have had but for the retaliation or to an equivalent position, (iii) reinstatement of full fringe benefits and seniority rights, (iv) payment of two times back pay, plus interest, and (v) compensation for any special damages sustained as a result of the retaliation, including litigation costs and reasonable attorney's fees. An officer or employee described in this paragraph may bring an action in any court of competent jurisdiction for such relief. An officer or employee who brings a cause of action pursuant to this paragraph shall notify the DSBS ACCO or DSBS Commissioner of such action; provided, however, that failure to provide such notice shall not be a jurisdictional defect, and shall not be a defense to an action brought pursuant to this paragraph. This paragraph shall not be deemed to create a right of action against the City, any public agency or other public entity, or the Corporation, nor shall any such public agency, entity or corporation be made a party to an action brought pursuant to this subdivision.

8.8.2 In accordance with Section 6-132 of the Administrative Code, the Consultant shall post a notice in the form annexed hereto at Exhibit L

8.8.3 For purposes of this Section, "adverse personnel action" includes dismissal, demotion, suspension, disciplinary action, negative performance evaluation, any action resulting in loss of staff, office space, equipment or other benefit, failure to appoint, failure to promote, or any transfer or assignment or failure to transfer or assign against the wishes of the affected officer or employee.

8.9 MacBride Principles. The Consultant stipulates and agrees to comply with the MacBride Principles.

8.10 Iran Divestment Act. The Contractor shall comply with Section 165-a of the New York State Finance Law.

8.11 Paid Sick Leave Law. The Consultant shall comply with Title 20, Chapter 8 of the New York City Administrative Code related to paid sick leave for Consultant's employees.

8.12 Doing Business Data Form Requirements.

8.12.1 Local Law No. 34 of 2007 amended the City's Campaign Finance Law and required the City to establish a database containing the names of any "person" that has "business with the city", as such terms are defined in LL 34. The Consultant shall comply with all requirements of LL 34 applicable to this Contract.

8.12.2 The Consultant shall complete and submit a Doing Business Data Form which can be found at www.nycedc.com. If the Consultant cannot access or download these forms, the Corporation may, upon request, send the Consultant the required forms.

8.12.3 The Consultant's failure to complete and submit a Doing Business Data Form and/or its submission of a form that is not accurate or complete may result in appropriate sanctions.

ARTICLE 9

M/WBE REQUIREMENTS

9.1 M/WBE Program. Local Law No. 129 of 2005 added and Local Law 1 of 2013 amended Section 6-129 of the Administrative Code of the City of New York (hereinafter "Section 6-129"). Section 6-129 establishes a program for participation in City procurement by minority-owned business enterprises ("MBEs") and women-owned business enterprises ("WBEs", together with "MBEs" collectively referred to as "M/WBEs"), certified in accordance with Section 1304 of the City Charter. As stated in the Section 6-129, the intent of the program is to address the impact of discrimination on the City's procurement process, and to promote the public interest in avoiding fraud and favoritism in the procurement process, increasing competition for City business and lowering contract costs. The Corporation endorses these goals and has adopted an M/WBE Program to further participation by MBEs and WBEs in the provision of the Services. All Consultants shall comply with all requirements of the Corporation's M/WBE Program applicable to this Contract.

9.2 Minority and Women -Owned Business Enterprises. M/WBE firms must be certified by DSBS to credit such firms' participation toward attainment of the Participation Goals. Such certification must occur prior to the firms' commencement of work.

9.3 Participation Goal.

9.3.1 The Participation Goal for this Contract is set forth in Part I, Section 1.12. The Participation Goal represents a percentage of the total dollar value of the Contract that may be achieved by awarding subcontracts to firms certified with DSBS as MBEs or WBEs, and/or by crediting the participation of the Consultant.

9.3.2 The Participation Goal is a material term of the Contract and the Consultant shall be subject to the Participation Goal.

9.3.3 A consultant that is an M/WBE shall be permitted to count its own participation toward fulfillment of the Participation Goal, provided that the value of the Consultant's participation shall be determined by subtracting from the total value of the Contract any amounts that the Consultant pays to direct Subcontractors. A Consultant may not subcontract more than 50% of the total value of the Contract unless it working under a retainer contract or a construction management contract. The value of an M/WBE Consultant's participation shall be determined by subtracting from the total value of the Contract any amounts that the respondent will pay to direct Subcontractors. If the Consultant is not an M/WBE, it must meet the Participation Goal through the awarding of subcontracts to firms certified with DSBS as MBEs or WBEs.

9.3.4 A Consultant that is a Qualified Joint Venture shall be permitted to count a percentage of its own M/WBE participation toward fulfillment of the Participation Goal. The value of the Qualified Joint Venture's participation shall be determined by first subtracting from

the total value of the Contract, any amounts that the Qualified Joint Venture will pay to direct Subcontractors. Thereafter, the M/WBE percentage of the Qualified Joint Venture shall be applied to the remaining value of the Contract to determine the overall Participation Goal.

9.4 M/WBE Narrative/Subcontractors Participation Plan.

9.4.1 The M/WBE Narrative and applicable forms for this Contract are attached hereto as Appendix H. If this is a retainer, the Consultant shall submit a Subcontractor Participation Plan on a task by task basis as required.

9.4.2 The Consultant must complete and submit a subcontractors M/WBE participation plan (the “Subcontractor(s) Participation Plan”) in the form attached hereto as Appendix H.

9.4.3 In the event that the Corporation does not approve a Subcontractor proposed by the Consultant, the Consultant shall have a reasonable time to propose alternate Subcontractors.

9.5 M/WBE Compliance Reports.

9.5.1 The Consultant shall provide the Corporation with written statements (“M/WBE Compliance Reports”), certified under penalty of perjury, reporting the status of the Consultant’s compliance with its Subcontractor Participation Plan as set forth in this Section 9.5.

9.5.2 The Consultant shall submit a M/WBE Compliance Report to the Corporation:

- (i) with each Requisition for payment; and/or
- (ii) on a periodic basis as the Corporation may require.

9.5.3 Each M/WBE Compliance Report shall set forth the following for the period covered by the report:

- (i) the total amount paid to Subcontractors (including Subcontractors that are not MBEs or WBEs);
- (ii) the names, addresses and contact numbers of each MBE or WBE hired as a Subcontractor pursuant to such plan as well as the dates and amounts paid to each MBE or WBE.

9.5.4 In addition to the foregoing, the Consultant shall submit a final, cumulative M/WBE Compliance Report to the Corporation with its Requisition for Final Payment. The Consultant shall set forth in such final report the information required by Section 9.5.3 in connection with all Services rendered by the Consultant and its Subcontractors during the entire Contract Term.

9.6 Subcontractor Payment Tracking. The Corporation requires the Consultant to track Subcontractor award and payment information online through the Compliance Tracking System (CTS). The Consultant is responsible for entering contact and award information on all Subcontractors associated with the Project and ensuring that any direct Subcontractors do the same for second-tier Subcontractors they are using on the project. When the Consultant receives payments from the Corporation, it will receive a system-generated notification prompting it to

access CTS and enter information on how much of that payment was retained and the amounts paid to each Subcontractor, along with dates of payment. The Consultant shall have seven days from receipt of this notification to enter the required information in the CTS. In addition, any changes to Subcontractors and award amounts must be tracked in this system.

The compliance tracking system can be accessed by following this link:
<https://nycedc.mwdbe.com/>

9.7 Change Orders. If the Consultant requests a change order having a value that exceeds ten percent (10%) of the Contract, the Corporation will establish an M/WBE participation goal for the work to be performed pursuant to the change order.

9.8 Modification of Subcontractors Participation Plan.

9.8.1 The Consultant may request modification of its Subcontractors Participation Plan after the award of the Contract. The Corporation may grant such request if it determines that the Consultant has established, with appropriate documentary and other evidence, that the Consultant has made all reasonable, good faith efforts to meet the Participation Goal set for the Contract.

9.8.2 Good Faith Efforts. Good faith efforts should be documented by Consultant requesting a modification and such documentation provided to the Corporation upon the Corporation's request. In determining whether the Consultant has made all reasonable good faith efforts to meet the Participation Goal, the Corporation will consider, along with any other relevant factors, evidence submitted by the Consultant showing that the Consultant has, without limitation, conducted the following:

9.8.2.1 Direct Outreach. The Consultant provided timely notice to M/WBEs of specific opportunities to participate in the Contract;

9.8.2.2 NYCEDC Assistance. The Consultant submitted timely requests for assistance to the Corporation's M/WBE liaison officer and provides the Corporation with a description of how the Corporation's recommendations were acted upon and an explanation of how action upon such recommendations did not lead to the desired level of participation of M/WBEs;

9.8.2.3 Advertised Opportunities. The Consultant advertised opportunities to participate in the Contract in general circulation media, trade and professional association publications, small business media and publications of M/WBE organizations;

9.8.2.4 Follow Up with M/WBEs. The Consultant sent timely written notices to advise M/WBEs that their interest in the Contract was solicited;

9.8.2.5 Substitution of Work. The Consultant made efforts to identify portions of the Contract Work that could be substituted for portions originally designated for the participation by M/WBEs in the Subcontractors Participation Plan and for which the Consultant claims an inability to retain M/WBEs;

9.8.2.6 Meeting with M/WBEs. The Consultant held meetings with M/WBEs prior to the date their proposals were due, for the purpose of explaining in detail the scope and requirements of the work for which their proposals were solicited;

9.8.2.7 Negotiated with M/WBEs. The Consultant made efforts to negotiate with M/WBEs as relevant to perform specific subcontracts, or acts as suppliers or service providers; and

9.8.2.8 Interested Subcontractor List. The Consultant made efforts to contact interested M/WBEs listed on the Website's Interested Subcontractor list.

9.8.3 The Corporation's M/WBE Director and Chief Contracting Officer will provide written notice to the Consultant of the determination on whether the Consultant has made all reasonable good faith efforts to meet the Participation Goal.

9.9 Compliance Audits. This Contract may be audited by the Corporation, DSBS and the City Comptroller to determine the Consultant's compliance with the requirements of the Corporation's M/WBE Program and the Consultant's Subcontractors Participation Plan.

9.10 Enforcement. In the event the Corporation determines that the Consultant or its Subcontractors have violated the requirements of the Corporation's M/WBE Program or the Subcontractors Participation Plan including, without limitation, a determination that the Consultant has made payments to or awarded work to Subcontractors in amounts less than the amounts specified in the Consultant's Subcontractor Participation Plan (unless the Corporation has permitted the Consultant to modify the Consultant's Subcontractors Participation Plan in accordance with Section 9.8), the Corporation may:

- (i) terminate the Contract;
- (ii) assess actual and consequential damages for and/or exercise its right to set off any additional expenses the Corporation incurs to complete the Project satisfactorily in accordance with the Corporation's M/WBE Program and in order to meet the Participation Goal including, without limitation, the actual and administrative costs of:
 - (a) meeting the Participation Goal through additional procurements;
 - (b) payments made to any other consultant retained to complete the Services; and
 - (c) investigation and enforcement; or
- (iii) assert any other right or remedy it has under the Contract.

9.11 Liquidated Damages for Failure to Fulfill Approved Participation Goals. If the Consultant fails to fulfill its Participation Goals set forth in its Subcontractors Participation Plan or the Participation Goals as modified by the Corporation pursuant to Section 9.8, the Corporation may assess liquidated damages in the amount of ten percent (10%) of the difference between the dollar amount of work required to be awarded to M/WBEs to meet the Participation Goal and the dollar amount the Consultant actually awarded and paid to M/WBEs. In view of the difficulty of accurately ascertaining the loss which the Corporation will suffer by reason of the Consultant's failure to meet the Participation Goals, the foregoing amount is hereby fixed and agreed as the liquidated damages that the Corporation will suffer by reason of such failure,

and not as a penalty. The Corporation may deduct and retain out of any monies which may become due under this Contract the amount of any such liquidated damages; and in case the amount which may become due under this Contract shall be less than the amount of the liquidated damages suffered by the Corporation, the Consultant shall be liable to pay the difference.

9.12 Statements. Statements made in any instrument submitted to the Corporation in connection with the Corporation's M/WBE Program shall be submitted under penalty of perjury and any false or misleading statement or omission shall be grounds for the application of any applicable criminal and/or civil penalties for perjury.

9.13 Evaluations. The Consultant's record in implementing its Subcontractor Participation Plan shall be a factor in the evaluation of its performance.

ARTICLE 10

MISCELLANEOUS

10.1 Consultant as Independent Contractor. Notwithstanding anything contained herein to the contrary including, without limitation, the provisions of Section 5.2 hereof, it is specifically understood and agreed that in the performance of the terms, covenants and conditions of this Contract, the Consultant and its Representatives shall not be deemed to be acting as agents, servants or employees of the Corporation or the City by virtue of this Contract or by virtue of any approval, permit, license, grant, right, or other authorization given by the City or the Corporation or any of their Representatives in connection with this Contract, but shall be deemed to be independent contractors performing work or professional services for the Corporation, and shall be deemed solely responsible for all acts taken by them pursuant to this Contract.

10.2 Assignment. This Contract is intended to secure the Services of the Consultant or a competent Representative or Representatives of the Consultant approved by the Director. The Consultant shall not assign, convey, subcontract, or transfer this Contract or the Consultant's rights hereunder without the written consent of the Director, which consent shall be manifested by Notice. The Corporation shall have the right to assign, convey, subcontract or transfer this Contract or the Corporation's rights hereunder without the written consent of the Consultant to the City or any other corporation, agency or instrumentality having authority to accept the assignment.

10.3 Right to Inspect. The Corporation, the City Comptroller, the Inspectors and any other individual or entity authorized under any Legal Requirement shall have the right on reasonable Notice to inspect the operations and records of the Consultant and its Subcontractors relating to this Contract.

10.4 Maintenance of Records. In order to facilitate any audit provided herein, the Consultant agrees to maintain accurate, readily auditable records and accounts with supporting documentation in accordance with generally accepted accounting principles of the Services performed by it, its employees, and its Subcontractors under this Contract and of all financial accounts and transactions maintained or undertaken in connection with this Contract, including, but not limited to, time cards and records reflecting the nature of the work performed and time

consumed, bank statements, cancelled checks, bills and receipts, Requisitions, and deposit slips, and to make such records available for inspection and audit in the City by the Corporation, the City, the Inspectors and any other individual or entity authorized under any Applicable Statute or Applicable Agreement upon reasonable Notice. Said records shall be maintained for a period of six (6) years after termination of this Contract.

10.5 Modification in Writing. No modification, amendment, waiver or release of any provision of this Contract or of any right, obligation, claim or cause of action arising hereunder shall be valid or binding for any purpose unless in writing and duly executed by the party against whom the same is asserted.

10.6 Captions. The tables of contents and captions of this Contract are for convenience of reference only and in no way define, limit or describe the scope or intent of the Contract or in any way affect this Contract.

10.7 Completeness. This Contract contains all the terms and conditions agreed upon by the parties hereto, and no other agreement, oral or otherwise, regarding the subject matter of this Contract shall be deemed to exist or to bind either of the parties hereto.

10.8 Severability. If any clause, provision or section of this Agreement be ruled invalid by any court of competent jurisdiction, the invalidity of such clause, provision or section shall not affect any of the remaining provisions hereof.

10.9 Notices.

10.9.1 Each Notice, demand, request or other communication in connection with this Contract shall be either: (i) served in person, with delivery of service acknowledged in writing by the party receiving the same; (ii) sent by nationally known overnight delivery service or telefax; or (iii) deposited in the U.S. mails, first class mail, postage prepaid, and addressed to the respective address herein set forth in Part I, Section 3 or to such other address as may be specified by Notice sent in accordance herewith.

10.9.2 Every Notice hereunder shall be deemed to have been given: (i) at the date of receipt by the respective party in the case of personal delivery, overnight delivery or telefax and (ii) five (5) business days after the date of deposit in the first class U.S. mails.

10.10 Non-Waiver. Failure of the Corporation or its Representatives to enforce or otherwise require the performance of any of the terms and conditions of this Contract, at the time or in the manner that said terms and conditions are set forth herein, shall not be deemed a waiver of any such terms or conditions by the Corporation and the same may be selectively enforced or raised as a basis of a claim or cause of action at the option of the Corporation.

10.11 Refusal to Testify.

10.11.1 The Consultant agrees to cooperate fully and faithfully with any investigation, audit or inquiry conducted by a State or City governmental agency or authority that is empowered, directly or by designation, to compel the attendance of witnesses and to examine witnesses under oath, or conducted by the Inspector General of a governmental agency

that is a party in interest to the transaction, submitted bid, submitted proposal, contract, lease, permit, or license that is the subject of the investigation, audit or inquiry.

10.11.2 If:

(i) any person who has been advised that her or his statement, and any information from such statement, will not be used against her or him in any subsequent criminal proceeding refuses to testify before a grand jury or other governmental agency or authority empowered directly or by designation to compel the attendance of witnesses and to examine witnesses under oath concerning the award of, or performance under, any transaction, agreement, lease, permit, contract, or license entered into with the City, the State, or any political subdivision or public authority thereof, or the PANYNJ, or the Corporation, or any local development corporation within the City, or any public benefit corporation organized under the laws of the State of New York, or

(ii) any person refuses to testify for a reason other than the assertion of her or his privilege against self-incrimination in an investigation, audit or inquiry conducted by a City or State governmental agency or authority empowered directly or by designation to compel the attendance of witnesses and to take testimony under oath, or by the Inspector General of the governmental agency that is a party in interest in, and is seeking testimony concerning the award of, or performance under, any transaction, agreement, lease, permit, contract, or license entered into with the City, the State, or any political subdivision thereof, or the Corporation, or any local development corporation within the City,

then the commissioner or agency head (each of which is hereinafter referred to as the “Commissioner”) whose agency is a party in interest to the transaction, submitted bid, submitted proposal, contract, lease, permit, or license involved in such investigation, audit or inquiry shall convene a hearing, upon not less than five (5) days written notice to the parties involved, to determine if any penalties should attach for the failure of a person to testify.

10.11.3 If any non-governmental party to the hearing requests an adjournment, the Commissioner who convened the hearing or the Corporation may, upon the Commissioner granting the adjournment, suspend any contract, lease, permit, or license pending the final determination pursuant to subsection 10.11.5 below without the City or the Corporation incurring any penalty or damages for delay or otherwise.

10.11.4 The Corporation or the City may impose the following penalties after a final determination by the Commissioner that penalties should attach for the failure of a person to testify:

(i) the disqualification for a period not to exceed five (5) years from the date of an adverse determination of any person, or any entity of which such person was a member at the time the testimony was sought, from submitting bids for, or transacting business with, or entering into or obtaining any contract, lease, permit or license with or from the City or the Corporation, as the case may be; and/or

(ii) the cancellation or termination of any and all such existing City or Corporation contracts, leases, permits or licenses that the refusal to testify concerns and that have not been assigned as permitted under this Contract, nor the proceeds of which pledged, to an unaffiliated and unrelated institutional lender for fair value prior to the issuance of the notice scheduling the hearing, without the City or the Corporation incurring any penalty or damages on account of such cancellation or termination; monies lawfully due for goods delivered, work done, rentals, or fees accrued prior to the cancellation or termination shall be paid by the City or the Corporation, as the case may be.

10.11.5 The Commissioner shall consider and address, in reaching her or his determination, and the Corporation and the Commissioner shall consider and address, in assessing an appropriate penalty, the factors in subparagraphs (i) and (ii) below. The Commissioner and the Corporation may also consider, if relevant and appropriate, the criteria established in subparagraphs (iii) and (iv) below in addition to any other information which may be relevant and appropriate:

(i) The entity's good faith endeavors or lack thereof to cooperate fully and faithfully with any governmental investigation or audit, including, but not limited to, the discipline, discharge, or disassociation of any person failing to testify, the production of accurate and complete books and records, and the forthcoming testimony of all other members, agents, assignees or fiduciaries whose testimony is sought.

(ii) The relationship of the person who refused to testify to any entity that is a party to the hearing, including, but not limited to, whether the person whose testimony is sought has an ownership interest in the entity and/or the degree of authority and responsibility the person has within the entity.

(iii) The nexus of the testimony sought to the subject entity and its contracts, leases, permits or licenses with the City or the Corporation.

(iv) The effect a penalty may have on an unaffiliated and unrelated party or entity that has a significant interest in an entity (subject to penalties under subsection 10.11.4 above), provided that the party or entity has given actual notice to the Commissioner upon the acquisition of the interest, or at the hearing called for in subsection 10.11.2(2) above gives notice and proves that such interest was previously acquired. Under either circumstance the party or entity must present evidence at the hearing demonstrating the potential adverse impact a penalty will have on such person or entity.

10.11.6 The term "license" or "permit" as used herein shall be defined as a license, permit, franchise or concession not granted as a matter of right.

10.11.7 The term "entity" as used herein shall mean any firm, partnership, corporation, association, joint venture or person that receives monies, benefits, licenses, leases or permits from or through the City or otherwise transacts business with the City.

10.11.8 The term "member" as used herein shall mean any person associated with another person or entity as a partner, director, officer, principal or employee.

10.11.9 The term “person” as used herein shall mean any natural person doing business alone or associated with another person or entity as a partner, director, officer, principal or employee.

10.12 No Political Activity. The Consultant agrees that there shall be no political activity or any activity to further the election or defeat of any candidate for public, political or party office as a part of or in connection with this Contract, nor shall any of the funds provided under this Contract be used for such purposes.

**NEW YORK CITY ECONOMIC DEVELOPMENT CORPORATION
N.Y.C GROCERIES BRANDING CONSULTANT
PROFESSIONAL SERVICES CONSULTANT CONTRACT
NYCEDC CONTRACT NO. [•]
PROJECT CODE NO. [•]**

**PART III
APPENDICES**

APPENDIX A	DEFINITIONS
APPENDIX B	SCOPE OF SERVICES
APPENDIX C	PAYMENTS
APPENDIX D	FORM OF CERTIFIED STATEMENT REGARDING USE OF NON-ORIGINAL MATERIALS
APPENDIX E	INSURANCE REQUIREMENTS
APPENDIX F	EQUAL EMPLOYMENT AND AFFIRMATIVE ACTION COMPLIANCE FOR NON-CONSTRUCTION CONTRACTS ADDENDUM
APPENDIX G	E.O. 50 EMPLOYMENT REPORT FORM
APPENDIX H	SUBCONTRACTORS PARTICIPATION PLAN
APPENDIX I	OUTSIDE FUNDING SOURCES
APPENDIX J	APPLICABLE REQUIREMENTS
APPENDIX K	APPLICABLE AGREEMENTS
APPENDIX L	WHISTLEBLOWER POSTER
APPENDIX M	RESERVED

APPENDIX A
DEFINITIONS

APPENDIX A

DEFINITIONS

The defined terms listed below shall have the following corresponding meanings in the annexed Contract (as defined herein) unless otherwise defined or the context otherwise requires. The singular shall include the plural and vice versa as the context may dictate. The gender used in the annexed Contract shall be deemed to refer to the masculine, feminine, or neuter gender, as the context or the identity of the persons being referred to may require.

Additional Insured	All individuals and entities listed in Appendix E
Allowable Additional Costs	As defined in Appendix B Scope of Services
Applicable Agreements	Various governing agreements related to the Funds, the Project and/or this Contract, including, without limitation, any specific “Applicable Agreements” identified in Part I, and any other governing agreement or MOU with the City, State and/or federal governments, or any agency thereof
Applicable Requirements	Any and all federal, state and local laws, statutes, rules, regulations and orders applicable to this Contract, the Funds or the Project, including, without limitation, any specific “Applicable Requirements” identified in Part I
Borough	The City borough where the Project is located
City	The City of New York
City Contract	The Amended and Restated Contract between the City and the Corporation, dated as of June 30, 2013 and the Amended and Restated Maritime Contract between the City and the Corporation, dated as of June 30, 2013, as applicable, as each may be amended, restated and/or revised from time to time
City Comptroller	Comptroller of the City or his or her designee
Commencement Date	The date upon which the Consultant shall commence the Services as stated in Part I, Section 1.4

Comptroller General	The United States Comptroller General
Confidential Information	Any and all information, records, data, materials, documents, electronic files or Work Product provided by NYCEDC and/or the City or any of its agencies to the Consultant except that which (i) shall have otherwise become publicly available through no fault of Consultant or its Representatives; (ii) becomes available to the Consultant on a nonconfidential basis from a source other than NYCEDC, the City or any of its agencies; or (iii) is known by the Consultant prior to its receipt from NYCEDC, the City or any of its agencies without any obligations of confidentiality with respect thereto
Consultant	The entity or person contracted by the Corporation to perform the Services pursuant to this Contract, as identified in Part I, Section 2.3
Consultant's Underlying Intellectual Property	The Consultant's analytical concepts, approaches, methodologies, or formats developed by the Consultant's staff, and to other materials not prepared for delivery to the Corporation and also including any derivatives, improvements, enhancements or extensions of the Consultant's Underlying Intellectual Property conceived, reduced to practice, or developed during the term of this Contract that are not uniquely applicable to the Corporation
Contract	The Contract between the Consultant and the Corporation to which this Appendix A is annexed, as defined in Part I, Section 1.1
Contract Completion Costs	As defined in Section 3.5.3
Contract Date	The date of this Contract, as stated in Part I, Section 1.3
Corporation	New York City Economic Development Corporation, a not-for-profit corporation organized pursuant to laws of the State of New York
CPL	Contractor Pollution Liability Insurance

DBEs	Disadvantaged Business Enterprises
Director	The person set forth in Part I, Section 2.2, or such other person as may be subsequently designated by the Corporation
Disability Benefit	A type of insurance to be purchased and maintained by the Consultant and its Subcontractors, in statutory amounts, for all of its employees engaged in the Services
DCAS	New York City Department of Citywide Administrative Services
DCP	New York City Department of City Planning
DEP	New York City Department of Environmental Protection
Division	Division of Labor Services of DSBS
DOB	New York City Department of Buildings
Doing Business Data Form	The form available at www.nycedc.com to be completed by the Consultant and submitted to the Corporation pursuant to LL 34
DOT	New York City Department of Transportation
DPR	New York City Department of Parks and Recreation
DSBS	New York City Department of Small Business Services
DSNY	New York City Department of Sanitation
Electronic Funds Transfer (EFT)	Any transfer of funds, other than a transaction originated by check, draft or similar paper instrument, that is initiated through an electronic terminal, telephonic instrument or computer or magnetic tape so as to order, instruct or authorized a financial institution to debit or credit an account
E.O. 50	Executive Order No. 50 (1980), as amended or revised from time to time

Employment Report(s)	The reports described in Appendix G and available at www.nycedc.com to be completed and submitted to the Corporation pursuant to Executive Order 50
Event of Default	As described in Part II, Section 3.3.2
Extra Work	A significant alteration to the work or Services that the Consultant has been directed to perform by the Director as described in Part II, Section 1.5.2
FDNY	New York City Fire Department
Federal Courts	United States Federal Courts located in New York City
FHWA	United States Federal Highway Administration
Final Completion	The performance of all Services contemplated in this Contract to the satisfaction of the Director
Final Payment	The last payment by the Corporation to the Consultant under the Contract upon Final Completion or as provided in Part II, Sections 3.5.2 and 3.5.4
Force Majeure	Any of the following acts and events that occur without the negligence or fault, and beyond the reasonable control, of Consultant and that of any of its successors, heirs, assigns, and/or Representatives and of which Consultant has given the Corporation express written notice within three (3) days after the commencement of the alleged cause of the delay, hindrance, or obstruction: governmental preemption in connection with a national emergency, war or act of war, insurrection, riot, act of public enemy, terrorist acts, labor disputes, accidents, mechanical failure and acts of God (including fire, flood or abnormal adverse weather conditions not reasonably anticipatable)
FTA	United States Federal Transit Administration
Funding Agencies	All federal, State or local agencies or entities that are the source of the Funds including, without limitation, any specific "Funding Agencies" identified in Part I

Funds	All funds from the federal, State or local sources to be applied to payments for Services under this Contract including, without limitation, any specific “Funds” identified in Part I
IDA	New York City Industrial Development Agency, a corporate governmental agency constituting a body corporate and politic and a public benefit corporation organized pursuant to Article 18-A of the General Municipal Law of the State of New York
Inspectors	All individuals or entities specifically identified as “Inspectors” in Part I, if any
Insurer	Any insurance company retained by the Consultant pursuant to Part II, Section 6.3.2
Joint Venture	An association, of limited scope and duration, between two or more persons who have entered into an agreement to perform and/or provide services required by a contract, in which each such person contributes property, capital, effort, skill and/or knowledge, and in which each such person is entitled to share in the profits of the venture in reasonable proportion to the economic value of its contribution.
Landmarks Preservation Commission (LPC)	The City of New York Landmarks Preservation Commission
Legal Requirements	All applicable laws, rules, regulations, ordinances, codes and orders of all federal, state and local governmental authorities, agencies, departments or bureaus having jurisdiction over and which affect the work and/or Services under this Contract including, without limitation, all Applicable Agreements and all Applicable Requirements
Local Law 34 (LL 34)	Local Law No. 34 of 2007, as it may be amended or superseded
MacBride Principles	Those principles relating to nondiscrimination in employment and freedom of workplace opportunities that requires employers doing business in Northern Ireland to

	comply with specific terms set forth in Section 6-115.1 of the City's Administrative Code
Maximum Contract Price	The maximum amount that may be paid for the Services under the Contract, as stated in Part I, Section 1.6
Maximum Payment	The maximum amount payable for each Portion of the Services during a billing period
MBEs	Minority-owned Business Enterprises
M/WBE Compliance Reports	As described in Part II, Section 9.5
M/WBEs	MBEs and WBEs, collectively
Subcontractors Participation Plan	As described in Part II, Section 9.5
MOU	Memorandum of Understanding
New York State Courts	Courts of the State of New York in the City and County of New York
Notice	Any written notice, demand, request, instruction, advice, directive or other communication in connection with this Contract to be delivered to a party designated in Part I, Section 3, for the receipt of notice in the manner set forth in Part II, Section 10.9.1
Notice to Proceed	Written Notice from the Corporation to the Consultant to proceed with the Services or any portion thereof
Notify	To give a Notice pursuant to Part II, Section 10.9.1
NYCEDC	The Corporation
NYCTA	New York City Transit Authority
NYPD	New York City Police Department
NYSDEC	New York State Department of Environmental Conservation
NYSDOH	New York State Department of Health

Appendix A-7

NYSDOS	New York State Department of State
NYSDOT	New York State Department of Transportation
OMB	New York City Office of Management and Budget
OPRHP	New York State Office of Parks, Recreation and Historic Preservation
PANYNJ	The Port Authority of New York and New Jersey
Participation Goal	The Corporation's goal for M/WBE participation related to the Contract, as defined in Part II, Section 9.3.
Payment Schedule	Schedule listing Maximum Payment for each Portion of the Services, appended to Appendix C when payment for Services or a Portion of the Services is on a Tasks completed basis
Payroll Report	Forms that the Consultant and any Subcontractors that provide any on-site construction activity must complete
Percentage of Completion	An amount equal to the percentage of completion of each Portion of the Services
Person In Charge	As identified in Part I, Section 2.5, the member(s) of the Consultant's professional staff who will have primary responsibility to perform and/or supervise and coordinate the performance of the Services
PLL	Pollution Legal Liability Insurance Policy
Portion	Each portion, task or phase of the Services as described in Appendix B and/or Appendix C
Principal	The Consultant's most senior officer of the Consultant's staff responsible for the performance of Services as identified in Part I, Section 2.4

Progress Reports	Reports which Consultant is obligated to prepare that show the status of the Services in accordance with the Progress Schedule
Progress Schedule	Any schedule issued or approved by the Corporation for the performance of the Services, including, without limitation, Project or Services milestones, deadlines or delivery dates
Project	As identified in Part I, Section 1.7, and described in detail in Appendix B
Project Manager	A person designated by the Corporation to serve as a liaison between the Corporation and the Consultant
Project Site	The location of the Project as identified in Part I, Section 1.8 and described in detail in Appendix B
Public Design Commission (“PDC”)	Public Design Commission of the New York City (f/k/a The Art Commission)
Qualified Joint Venture (“QJV”)	A Joint Venture between one or more MBEs and/or WBEs and another person, in which the percentage of profit to which the certified firm or firms is entitled for participation in the Contract, as set forth in the joint venture agreement, is at least 25% of the total profit.
RAP	Remedial action plan
Representatives	The employees, agents, servants, officers, directors, members, independent contractors and subcontractors of a person or entity
Requisition	A request for payment, to be submitted by Consultant not more than once per month, setting forth in detail, for the billing period for which partial payment is requested, the amount requested and Services performed during the billing period
Retainage	Any sum withheld from any payment to the Consultant including, without limitation, those set forth in Part II, Sections 1.5.3, 2.2.1 and 4.2.3

Retainage Payment Date	The date by which any Retainage identified in Part I, Section 1.10 will be paid to the Consultant, as identified in Part I, Section 1.11, subject to the provisions of Part II, Article 2 and Part III, Appendix C
Scope of Services	The Services to be provided by the Consultant in connection with this Contract, as set forth in Appendix B
Services	All of the services to be provided to the Corporation by the Consultant pursuant to the Contract, as described in greater detail in Appendix B
SHPO	State Historic Preservation Officer
Specific Terms and Conditions	Part I of this Contract
Fee and Cost Schedule	Schedule listing names of Consultant's staff, hourly rates and estimated number of days to be spent providing Services, appended to Appendix C when payment for Services or a Portion of the Services is on an hourly rate basis
State	State of New York
Subcontractor	Any person or entity including, without limitation, contractors, consultants, subconsultants, vendors and subcontractors of such persons or entities, employed or retained by the Consultant in accordance with the Contract to provide any services, work, materials, equipment or supplies in connection with the Services
Subcontractors' Costs	The compensation payable by the Consultant to any subcontractor(s) of the Consultant pursuant to a contract(s) entered into pursuant to Part II, Section 4.2
Term	The duration of this Contract, as stated in Part I, Section 1.5
USACOE	United States Army Corps of Engineers
USDOT	United States Department of Transportation
UST	Underground storage tanks

Appendix A-10

WBEs	Women-owned Business Enterprises
Worker's Compensation	A type of insurance to be purchased and maintained by the Consultant and its Subcontractors, in statutory amounts, for all of its employees engaged in the Services
Work-Made-For-Hire	As defined in Section 101 of the United States Copyright Act, 17 U.S.C. § 101
Work Product	All reports, plans, studies, surveys, data, databases, programs, processes, systems, drawings, tracings, blueprints, photographs, computer drawings, schematics, specifications, log books, correspondence, models, studies, permits approvals, designs, deliverables, samples, presentation materials, analyses, punch lists, submissions, filings, applications, schedules, documents and materials, including, without limitation, those related to inspections, tests and test results, in all formats now known or hereinafter known, prepared or furnished by the Consultant pursuant to this Contract, <u>provided however</u> that Work Product shall not include any Consultant's Underlying Intellectual Property

APPENDIX B

SCOPE OF SERVICES

APPENDIX C

PAYMENTS

APPENDIX C

PAYMENTS BASED ON TASKS COMPLETED

The Maximum Payment for each Portion of the Services shall be the respective amounts set forth for in the Payment Schedule annexed hereto as Exhibit 1 to this Appendix C.

Interim payments shall be made to the Consultant. The interim payments will be made no more frequently than once a month in an amount equal to the Percentage of Completion of each Portion of the Services, multiplied by the Maximum Payment for each Portion performed during the billing period, less any Retainage. The Consultant shall also be reimbursed for Allowable Additional Costs as such costs accrue. Except as may permitted under Part II, Section 2.2.1 of the Contract, Retainage will not be applied against Allowable Additional Costs.

To request an interim payment, the Consultant shall submit to the Corporation's **Accounts Payable Department**, not more than once per month, a Requisition setting forth in detail, for the period for which partial payment is requested, the following:

- (i) the Percentage of Completion for each Portion of the Services performed by the Consultant during the billing period;
- (ii) Allowable Additional Costs incurred during the billing period;
- (iii) the amount of partial payment requested; and
- (iv) a representation and warranty that, except as set forth in the Requisition, the representations and warranties made by the Consultant in Article 7 of the Contract are true and correct as of the date of the Requisition as if made on the date of the Requisition.

An EFT Enrollment Form is attached as Exhibit 2 to this Appendix C and must be completed and returned to the Corporation prior to Consultant's submission of its first Requisition.

In addition, the Consultant shall submit Progress Reports to the Director at least monthly or in accordance with any other schedule approved by the Director, or at the Director's request.

Such Progress Reports shall clearly state the reasons for any actual or anticipated delays in completion of the Services

EXHIBIT 1 TO APPENDIX C**PAYMENT SCHEDULE**

[•]	\$
Task 1:	\$
Task 2:	\$
Task 3:	\$
Task 4:	\$
[•]	\$
Task 5:	\$
Task 6:	\$
Task 7:	\$
Task 8:	\$
Other/Miscellaneous Expenses	\$
Total Proposed Fee	\$

Tasks**Total**

EXHIBIT 2 TO APPENDIX C

EFT ENROLLMENT FORM



NEW YORK CITY ECONOMIC DEVELOPMENT CORPORATION

**DIRECT DEPOSIT/ELECTRONIC FUNDS TRANSFER (EFT)
VENDOR PAYMENT ENROLLMENT FORM**

INSTRUCTIONS: Please complete all sections of this Enrollment Form and attach a voided check or a copy of an encoded deposit slip that includes an imprinted vendor's name. See the reverse side for more information and instructions.

Mail to: New York City Economic Development Corporation, 110 William Street, 4th Floor, New York, NY 10038
Attention: Controller, Accounting Dept. or Fax to: 212-312-3914

SECTION I – VENDOR INFORMATION

1. SOCIAL SECURITY NUMBER OR TAXPAYER ID NUMBER:
(AS IT APPEARS ON W-9 FORM)

--	--	--	--	--	--	--	--	--	--

2. VENDOR NAME (AS IT APPEARS ON W-9 FORM);
(AS IT APPEARS ON W-9 FORM)

--

3. VENDOR'S PRIMARY ADDRESS:

4. VENDOR'S EMAIL ADDRESS:

--	--

SECTION II – FINANCIAL INSTITUTION INFORMATION

1. BANK ACCOUNT NUMBER:

2. ACCOUNT NAME:

3. BANK NAME:

--

4. BANK BRANCH ADDRESS:

5. ROUTING TRANSIT NUMBER:
(LOCATED AT THE BOTTOM OF YOUR CHECK)

--	--	--	--	--	--	--	--	--	--

6. ACCOUNTING TYPE: (CHECK ONE)

☐

CHECKING

☐

SAVINGS

7. DIRECT DEPOSIT/ACH/EFT COORDINATOR'S NAME:

8. TELEPHONE NUMBER:

SECTION III – VENDOR SIGNATURE

--	--	--

VENDOR SIGNATURE

PRINT NAME

DATE


NEW YORK CITY ECONOMIC DEVELOPMENT CORPORATION
**DIRECT DEPOSIT/ELECTRONIC FUNDS TRANSFER (EFT)
VENDOR PAYMENT ENROLLMENT FORM**
GENERAL INSTRUCTIONS

Please complete all sections of the Direct Deposit EFT Enrollment Application and forward the completed application along with a voided check or a copy of an encoded deposit slip that includes an imprinted vendor's name to:

New York City Economic Development Corporation, 110 William St., Room 400
New York, NY 10038 – Attention: Controller, Accounting Dept or Fax to: 212-312-3914.

SECTION I – VENDOR INFORMATION

1. Enter the vendor's social security number or taxpayer ID number, the 9-digit number reported on W-9 form.
2. Provide the name of the vendor (as it appears on the W-9).
3. Enter the vendor's complete address for EFT correspondence associated with this account.
4. Provide the vendor's E-mail address, if you have one.
5. Indicate the name and telephone number of the vendor's contact person. (If you are enrolling yourself individually, you are the contact person).

SECTION II – FINANCIAL INSTITUTION INFORMATION

1. Indicate the vendor's bank account number.
2. Indicate the vendor's account name.
3. Provide bank's name.
4. Provide the complete address of your bank.
5. Indicate 9-digit routing (ABA) transit number (located at the bottom of your check).
6. Indicate type of account: (Check one box only).
7. List name and telephone number of your bank's Direct Deposit/EFT Coordinator.

SECTION III – VENDOR SIGNATURE

Sign and date where indicated.

EXHIBIT 3 TO APPENDIX C

THE CITY OF NEW YORK • OFFICE OF THE COMPTROLLER • BUREAU OF LABOR LAW

PAYROLL REPORT

TO BE SUBMITTED WITH REQUESTION FOR PAYMENT

NAME OF PRIME CONTRACTOR		NAME OF CONTRACTOR/SUBCONTRACTOR		ADDRESS		PHONE #		AGENCY		PAYROLL #		TAX I.D. #													
CONTRACT REGISTRATION #		JOB CODE		WEEK ENDING DATE		PROJECT NAME & LOCATION																			
(1) NAME ADDRESS LAST FOUR DIGITS OF SOCIAL SECURITY NUMBER		(2) LIST TRADE & CHECK CLASSIFICATION: JOURNEYMAN APPRENTICE (NYS DOL REGISTERED) HELPER		(3) T I M E		(4) DAY AND DATE		(5) TOTAL HOURS		(6) BASE RATE OF PAY PER HOUR		(7) TOTAL BASE PAY		(8) RATE PER HOUR		(9) PAID TO (Local # if Union is checked)		(10) TOTAL BENEFITS PAID		(11) GROSS PAY		(12) TOTAL TAX & OTHER DEDUCTIONS		(13) NET PAY	
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							
		RT JA H																							



Instructions for the Preparation and Submission of a Payroll Report

1. All persons who performed any on-site construction activity, during the period of the requisition, shall be listed on the Payroll Report.
2. Separate Payroll Reports shall be submitted by the prime contractor and each subcontractor who performed any on-site construction activity during the period of the requisition.
3. Failure to provide the required Payroll Report may result in the requisition for payment being returned unpaid or the payment being reduced.
4. **PAYROLL REPORT HEADING:** The Payroll Report Heading shall require the following information:

NAME OF PRIME CONTRACTOR: Enter the name of the firm that has entered into the contract with the New York City government agency.

NAME OF CONTRACTOR / SUBCONTRACTOR: The legal name of the firm submitting the Payroll Report shall be placed immediately below this designation. Circle either the word CONTRACTOR or SUBCONTRACTOR as applicable.

ADDRESS: Insert the current address (i.e., street, city, state and zip code) of the firm submitting the Payroll Report.

PHONE NO.: Enter the telephone number of the firm submitting the Payroll Report in the space provided.

AGENCY: Enter the name of the New York City government agency that has the contract with the Prime Contractor.

PAYROLL NO.: In the space provided, enter the Payroll Number of the Contractor or Subcontractor.

CONTRACT REG. NO.: Enter the Contract Registration Number here. This may be obtained from the "Notice of Award" and / or the "Order to Commence Work" letters.

JOB CODE: In the space provided, enter the Contractor / Subcontractor's in-house labor distribution code or job number where applicable.

WEEK ENDING DATE: In the space provided, enter the last date of the pay-week (i.e., month, day, year).

PROJECT NAME & LOCATION: In this space, enter the Project Name and Location where contract work is being performed.

TAX I.D. NO.: Enter in this space the Federal Tax Identification Number of the firm submitting the Payroll Report.
5. For every employee who performed any on-site construction activity during the period of the Payroll Report, the following information shall be provided:
 - 1) **NAME, ADDRESS, LAST FOUR DIGITS OF THE SOCIAL SECURITY NO.:** The legal name, current address and the last four digits of the social security number of each employee. (Employers must keep the full social security number on file for each of their covered workers.) If the employee has no social security number, please list his/her IRS Individual Taxpayer Identification Number and mark it "ITIN".
 - 2) **LIST TRADE & CHECK WORK CLASSIFICATION:** Specify and insert the Trade applicable to the work performed by each employee. The Trade identified must be one listed on the Prevailing Wage & Supplemental Benefits Schedule of the Comptroller, i.e., Electrician, Laborer, etc. Check next to the letter J if the individual is a Journeyman. Check next to the letter A if the person is a Registered Apprentice with the Department of Labor of the State of New York. Check next to the letter H only if the person is a Helper in a trade classification that has Helper rates listed in the Comptroller's Schedule of Prevailing Wages.
 - 3) **TIME:** RT indicates Regular Time, and OT indicates Overtime.
 - 4) **DAY AND DATE:** Below this heading, in the first row, enter the appropriate sequence of the contractor's pay records. MTWTFSS, for example, is the sequence to use if the workweek ends on a Sunday, and SSMTWTF is the sequence if the workweek ends on a Friday. In the second row, below each letter representing the day of the workweek, insert the corresponding date. Below the heading HOURS WORKED EACH DAY, at the intersection of the column of the particular day and date and the horizontal row of the employee's name, insert the hours worked each day in the appropriate box either for RT (Regular Time) and / or OT (Overtime). If an employee worked Shift Time, the RT (Regular Time) row shall be used and adjusted accordingly.
 - 5) **TOTAL HOURS:** Add the hours worked for Regular and / or Shift Time with the hours worked for Overtime, and enter separate totals in this column.
 - 6) **BASE RATE OF PAY PER HOUR:** Specify the actual base rate of pay per hour paid to the employee. Do not include supplemental benefits in this amount.
 - 7) **TOTAL BASE PAY:** Total amount earned by the employee, not including benefits.
- SUPPLEMENTAL BENEFITS:**
 - 8) **RATE PER HOUR:** Amount of supplemental benefits paid / provided per hour.
 - 9) **PAID TO:** Place a check mark in the appropriate box: U for Union if benefits paid to a Union, E for Employee if benefits paid in cash (or check) directly to the employee, or O for Other, if benefits are otherwise paid / provided to the employee. If U is checked, you must insert the "Local" number of the union in that box.
 - 10) **TOTAL BENEFITS PAID:** Total amount of supplemental benefits paid / provided for the workweek to the employee.
 - 11) **GROSS PAY:** Total amount earned for workweek. This amount comprises the Total Base Pay plus any benefit paid in cash (or check) directly to the employee (i.e., column (7) + column (9) E if Box E is checked and payment made directly to employee). No other type of benefit should be included in this column's total.
 - 12) **TOTAL TAX AND OTHER DEDUCTIONS:** Enter the sum total of all deductions in this column (including FICA, Federal, State and City Taxes, etc.). This does not absolve you from maintaining appropriate tax and other records required by law).
 - 13) **NET PAY:** Total amount of pay after all deductions (i.e., the actual Take-Home Pay).

APPENDIX D

FORM OF CERTIFIED STATEMENT REGARDING
USE OF NON-ORIGINAL MATERIALS

APPENDIX D

FORM OF CERTIFIED STATEMENT REGARDING USE OF NON-ORIGINAL MATERIALS

STATE OF)
) ss.:
COUNTY OF)

The undersigned, being first duly sworn, deposes and states as follows:

1. I am the Principal of the Consultant named below in connection with the contract (the "Contract") identified below between the Consultant and New York City Economic Development Corporation ("NYCEDC").

2. I make this affidavit pursuant to Section 5.2.6(iii) of the Contract to verify certain information regarding non-original materials included in the Work Product (as defined in the Contract) furnished by the Consultant to NYCEDC pursuant to the Contract.

3. I hereby certify that the information set forth on the "List of Rights, Limitations and Requirements Regarding the Use and Display of Non-Original Materials Included in Consultant's Work Product" (the "Non-Original Materials List") annexed hereto and made a part hereof, and the licenses, releases, permissions, clearances and other documents (collectively, the "Licenses") annexed thereto, are complete, true and accurate as of the date of this affidavit, and I acknowledge and understand that NYCEDC shall rely thereon in connection with any use and display of such materials.

4. In particular, I hereby certify that the annexed Non-Original Materials List and Licenses set forth (i) all non-original materials included in Consultant's Work Product; (ii) all information as to the source of such materials; (iii) all information as to any durational limitations on use of such materials; (iv) all requirements as to notices that must be displayed in connection with display, including the specific owner of the rights to be credited; and (v) all other limitations on the use and display under the Licenses.

Dated: _____

Consultant _____

NYCEDC Contract No.: _____

Signature _____

Printed _____

Name: _____
Title: _____

Sworn to before me this

day of _____, 20

Notary Public

**LIST OF RIGHTS, LIMITATIONS AND REQUIREMENTS
REGARDING THE USE AND DISPLAY OF NON-ORIGINAL MATERIALS INCLUDED IN
CONSULTANT'S WORK PRODUCT**

Non-Original Material	Source	Rights/Limitations/Requirements*

*** ATTACH COPIES OF ALL LICENSES, RELEASES, PERMISSIONS, CLEARANCES AND OTHER
RELEVANT DOCUMENTS**

APPENDIX E

INSURANCE REQUIREMENTS

- 1. Required Policies and Amounts**
- 2. Additional Insureds**
- 3. Required Provisions**
- 4. Sample Form of Insurance Certificate**

APPENDIX E

INSURANCE REQUIREMENTS

1. Required Policies and Amounts*

Workers' Compensation/
Disability Benefits:

In statutory amounts

Employer's Liability:

The greater of statutory amounts or \$1,000,000 each employee, each accident and per policy

Commercial General
Liability:

A minimum of \$1,000,000 per occurrence, with an annual aggregate of not less than \$2,000,000 in the aggregate

The maximum deductible for the Commercial General Liability policy shall be \$25,000

Automobile Liability:

\$1,000,000 combined single limit

Umbrella/Excess Liability:

\$2,000,000 on a per occurrence and aggregate basis, and shall be excess of primary general, automobile and employer's primary liability limits

If the Consultant is performing services that entail gathering and dissemination of information via any media platform, or creation and maintenance of a website or internet presence then Consultant shall purchase and maintain additional insurance of the following type and with the following limit in connection with the performance of the Services and any work incidental thereto:

Media Liability:

Media Liability insurance which shall be written with a minimum amount of \$500,000 per claim and in the aggregate.

If the Consultant cancels its Media Liability policy during, or lets its Media Liability policy coverage lapse after, the policy period in which the term for services under the Consultant Contract ends, the Consultant must obtain tail coverage, or exercise an extended reporting period option, that extends the ability to file a claim under the Media Liability insurance for a period of at least three years.

APPENDIX E**INSURANCE REQUIREMENTS****2. Additional Insureds**

For the purposes of this Contract and the requirements of Article 6 thereof including, without limitation, Section 6.3.3 (iii), the term “Additional Insureds” shall include the following individuals and entities:

New York City Economic Development Corporation
The City of New York

and such other entities and individuals as the Corporation may direct from time to time.

APPENDIX E

INSURANCE REQUIREMENTS

3. Required Provisions

The policies required under Section 6.3.9 (ii) of the Contract shall contain the following provisions, if available:

“A. Notices from the insurer (the “Insurer”) to the New York City Economic Development Corporation (the “Corporation”) and the City of New York (the “City”), in connection with this policy, shall be addressed to the General Counsel, New York City Economic Development Corporation, at One Liberty Plaza, New York, New York 10006 (with a copy to the Corporation’s Contract Administrator at the same address), and to the Commissioner, New York City Department of Small Business Services, at One Liberty Plaza, New York, New York 10006 or such other addresses as may be specified by the Corporation;

B. The Insurer shall accept notice of accident from the Corporation or the City as soon as practicable after receipt by an official of such Additional Insured (as identified in Appendix E of the Contract between the Corporation and the Consultant to which this policy applies) of notice of such accident as valid and timely notice under this policy;

C. The Insurer shall accept notice of claim from the City as soon as practicable after such claim has been filed with the Comptroller of the City and notice of claim from the Corporation, as soon as practicable after receipt by such party as valid and timely notice under this policy;

D. Notice of accident or claim to the Insurer by the Consultant, the Corporation or the City shall be deemed notice by all under this policy;

E. This policy shall not be canceled, terminated or modified by the Insurer or the Consultant unless thirty (30) days prior written notice is sent by registered mail to the Corporation or the City;

F. The presence of engineers, inspectors or other employees or agents of the Consultant, the Corporation or the City at the site of the Services performed by the Consultant shall not invalidate this policy of insurance; and

G. Violation of any of the terms of any other policy issued by the Insurer to the Consultant or a subcontractor of the Consultant shall not invalidate this policy; and

H. Insurance, if any, carried by the Corporation, the City or the Additional Insureds will not be called upon to contribute to a loss that would otherwise be paid by the Insurer.”

APPENDIX E**INSURANCE REQUIREMENTS**

4. Sample Form of Insurance Certificate (except that the “Certificate Holder” box should match the Corporation’s address for notices as provided in Section 3.1 of the Contract)



CERTIFICATE OF LIABILITY INSURANCE

 DATE (MM/DD/YYYY)
 11/11/1111

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER Insurance Broker's Name Address	CONTACT NAME: PHONE (A/C, No, Ext): E-MAIL ADDRESS: FAX (A/C, No): INSURER(S) AFFORDING COVERAGE INSURER A: Commercial General Liability Company INSURER B: Auto Liability Company INSURER C: State Insurance Fund INSURER D: Umbrella Liability Company INSURER E: Professional Liability Company INSURER F: Builders Risk Company
INSURED Your Firm's Name Address	NAIC #

COVERAGES

CERTIFICATE NUMBER:

REVISION NUMBER:

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADD'L INSR	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS
A	GENERAL LIABILITY ☒ COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☐ OCCUR Additional Insureds - City of New York; New York City Economic Development Corporation; Apple Industrial Development Corp. GEN'L AGGREGATE LIMIT APPLIES PER: POLICY ☐ PRO-JECT ☐ LOC ☐	Y	Y	Insurance Policy #	11/11/1111	22/22/2222	EACH OCCURRENCE \$ 1,000,000 DAMAGE TO RENTED PREMISES (Ea occurrence) \$ MED EXP (Any one person) \$ PERSONAL & ADV INJURY \$ GENERAL AGGREGATE \$ 2,000,000 PRODUCTS - COMP/OP AGG \$ \$
B	AUTOMOBILE LIABILITY ☒ ANY AUTO ☐ ALL OWNED AUTOS ☐ SCHEDULED AUTOS ☐ HIRED AUTOS ☐ NON-OWNED AUTOS	Y	Y	Insurance Policy #	11/11/1111	22/22/2222	COMBINED SINGLE LIMIT (Ea accident) \$ 1,000,000 BODILY INJURY (Per person) \$ BODILY INJURY (Per accident) \$ PROPERTY DAMAGE (Per accident) \$ \$
D	☒ UMBRELLA LIAB ☐ OCCUR ☐ EXCESS LIAB ☐ CLAIMS-MADE DED ☐ RETENTION \$	Y	Y	Insurance Policy #	11/11/1111	22/22/2222	EACH OCCURRENCE \$ 10,000,000 AGGREGATE \$ 10,000,000 \$
C	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below	Y	N/A	Insurance Policy #			☒ WC STATU-TORY LIMITS ☐ OTH-ER E.L. EACH ACCIDENT \$ 1,000,000* E.L. DISEASE - EA EMPLOYEE \$ E.L. DISEASE - POLICY LIMIT \$
E	Professional Liability (Consultant Contracts Only)						\$2,000,000 per claim and in the aggregate (100% of Maximum Contract Price)
F	Builders Risk (Construction Contracts Only)						
G	Owner's Protective Liability** (Construction Contracts Only)						

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (Attach ACORD 101, Additional Remarks Schedule, if more space is required)

Referenced Project: Contract No. 1000000
 Name of Project - Type of Project

MUST LIST EACH ADDITIONAL INSURED AND STATE THAT COMMERCIAL GENERAL LIABILITY AND UMBRELLA /EXCESS LIABILITY SHALL BE ON A PRIMARY AND NON-CONTRIBUTORY BASIS FOR EACH ADDITIONAL INSURED

CERTIFICATE HOLDER New York City Economic Development Corporation 110 William Street, 6th Floor New York, NY 10038 Attention: Contract Administration	CANCELLATION SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS. AUTHORIZED REPRESENTATIVE Signature
--	---

© 1988-2010 ACORD CORPORATION. All rights reserved.

ACORD 25 (2010/05)

The ACORD name and logo are registered marks of ACORD

APPENDIX F
E.O. 50 SUPPLY & SERVICE RIDER
EQUAL EMPLOYMENT OPPORTUNITY

APPENDIX F

E.O. 50 SUPPLY & SERVICE RIDER

EQUAL EMPLOYMENT OPPORTUNITY

[Note: for purposes of this rider, the “contractor” means the Consultant identified in this Contract]

This contract is subject to the requirements of Executive Order No. 50 (April 25, 1980) (§10-14) as revised (“E.O.50”) and the Rules and Regulations promulgated thereunder. No contract will be awarded unless and until these requirements have been complied with in their entirety. By signing this contract, the contractor agrees that it:

- (1) will not discriminate unlawfully against any employee or applicant for employment because of race, creed, color, national origin, sex, age, handicap, marital status, sexual orientation or citizenship status with respect to all employment decisions including, but not limited to, recruitment, hiring, upgrading, demotion, downgrading, transfer, training, rates of pay or other forms of compensation, layoff, termination, and all other terms and conditions of employment;
- (2) will not discriminate in the selection of subcontractors on the basis of the owner’s, partners’ or shareholders’ race, color, creed, national origin, sex, age, handicap, marital status or sexual orientation or citizenship status;
- (3) will state in all solicitations or advertisements for employees placed by or on behalf of the contractor that all qualified applicants will receive consideration for employment without regard to race, creed, color, national origin, sex, age, handicap, marital status, sexual orientation or citizenship status, or it is an equal employment opportunity employer;
- (4) will send to each labor organization or representative of workers with which it has a collective bargaining agreement or other contract or memorandum of understanding, written notification of its equal employment opportunity commitments under E.O. 50 (§10-14) and the rules and regulations promulgated thereunder; and
- (5) will furnish before the contract is awarded all information and reports including an Employment Report which are required by E.O. 50 (§10-14), the rules and regulations promulgated thereunder, and orders of the Director of the Division of Labor Services (the “Division”). Copies of all required reports are available upon request from the contracting agency; and
- (6) will permit the Division to have access to all relevant books, records and accounts for the purposes of investigation to ascertain compliance with such rules, regulations, and orders.

The contractor understands that in the event of its noncompliance with the nondiscrimination clauses of this contract or with any such rules, regulations, or orders, such noncompliance shall constitute a material breach of the contract and noncompliance with E.O. 50 (§10-14) and the rules and regulations promulgated thereunder. After a hearing held pursuant to the rules of the Division, the Director may direct the imposition by the contracting agency head of any or all of the following sanctions:

- (i) disapproval of the contractor;

- (ii) suspension or termination of the contract;
- (iii) declaring the contractor in default; or
- (iv) in lieu of any of the foregoing sanctions, the Director may impose an employment program.

The Director of the Division may recommend to the contracting agency head that a contractor who has repeatedly failed to comply with E.O 50 (§10-14) and the rules and regulations promulgated thereunder be determined to be nonresponsible.

The contractor agrees to include the provisions of the foregoing paragraphs in every subcontract or purchase order in excess of New York City's small purchase limit established by rule of New York City's Procurement Policy Board to which it becomes a party unless exempted by E.O. 50 (§10-14) and the rules and regulations promulgated thereunder, so that such provisions will be binding upon each subcontractor or vendor. The contractor will take such action with respect to any subcontract or purchase order as may be directed by the Director of the Division of Labor Services as a means of enforcing such provisions including sanctions for noncompliance.

The contractor further agrees that it will refrain from entering into any contract or contract modification subject to E.O. 50 (§10-14) and the rules and regulations promulgated thereunder with a subcontractor who is not in compliance with the requirements of E.O. 50 (§10-14) and the rules and regulations promulgated thereunder.

APPENDIX G

E.O. 50 EMPLOYMENT REPORT FORM

The Consultant shall complete and submit, and if applicable, shall require its Subcontractors to complete and submit, Employment Reports (as required by E.O. 50) to the Corporation which can be found at www.nycedc.com in the following section:

“Resources/Vendor Resources”

If the Consultant cannot access or download these forms, the Corporation will, upon request, send the Consultant the required forms. The text of said section reads as follows:

Non-Construction Consulting Contracts

Non-construction consulting contracts require a Supply & Service employment report. Generally, the “under 50 employees” form should be used by companies with fewer than 50 employees, and the longer “full form” should be used for companies with more than 50 employees. Please refer to the Supply & Service instructions document to learn more about the forms.

[Supply & Service Employment Report Instructions](#)

[Supply & Service – under 50 employees](#)

[Supply & Service – full form](#)

APPENDIX H
SUBCONTRACTORS PARTICIPATION PLAN
SEPARATE ATTACHMENT

APPENDIX I
OUTSIDE FUNDING SOURCES

[Intentionally Deleted]

APPENDIX I

OUTSIDE FUNDING SOURCE PROVISIONS

[Intentionally Deleted]

APPENDIX J
APPLICABLE REQUIREMENTS

[Intentionally Deleted]

APPENDIX K
APPLICABLE AGREEMENTS

[Intentionally Deleted]

APPENDIX L
WHISTLEBLOWER POSTER



REPORTING INFORMATION TO THE NEW YORK CITY DEPARTMENT OF INVESTIGATION

If you have information of any corrupt or fraudulent activities or unethical conduct relating to a New York City funded project or contract, contact:

Department of Investigation (DOI) Complaint Bureau
212-825-5959

or by mail or in person at:

DEPARTMENT OF INVESTIGATION
80 MAIDEN LANE, 17th FLOOR
NEW YORK, NEW YORK 10038
Attention: COMPLAINT BUREAU

or file a complaint on-line at:

www.nyc.gov/doi

All communications are confidential.

THE LAW PROTECTS EMPLOYEES OF CITY CONTRACTORS WHO REPORT CORRUPTION

- Any employee of a contractor or subcontractor that has a contract with the City or a City contractor of more than \$100,000 is protected under the law from retaliation by his or her employer if the employee reports wrongdoing related to the contract to the DOI.
- To be protected by this law, an employee must report information about fraud, false claims, corruption, criminality, conflict of interest, gross mismanagement, or abuse of authority relating to a City contract over \$100,000 to DOI or to certain other government officials all of whom must forward the report to DOI.
- Any employee who has made such a report and who believes he or she has been dismissed, demoted, suspended, or otherwise subject to an adverse personnel action because of that report is entitled to bring a lawsuit against the contractor and recover damages.



APPENDIX 6:

PAYMENTS BASED ON TASKS COMPLETED

Complete Column two with estimated cost to complete each task of the proposed contract.

Task:	Estimated Cost:
Brand Research, Strategy, and Concepting (Anticipated July-August 2026) Task 1A: Conduct desktop research and bespoke focus group interviews to uncover audience insights that can elevate the brand positioning. Task 1B: Observe City-led community engagement session(s) if schedule alignment allows to support brand research. Task 1C: Develop psychographic profiles of New York grocery shoppes and household decision makers to understand pain points and brand tastes / preferences. Task 1D: Analyze the competitive landscape of existing grocery stores and food sources (e.g. bodegas) in New York City and determine potential barriers to market entry that can inform N.Y.C. Groceries brand positioning.	\$
Visual Identity and Design Application (Anticipated August-October 2026) Task 2A: Provide brand options for NYCEDC review and selection, including brand name, logos (primary, secondary, icon), typography system, color palette, and slogan(s). Task 2B: Provide brand guidelines and mockups for in-store and exterior environmental branding applications, including but not limited to: Exterior store signage, Palette of surface finishes, Lighting (color, reflection, contrast), Brand-aligned displays or kiosks, Window vinyl graphics, Wayfinding posters, Aisle signage, Category headers, Promotional banners, Price labels, Product private labeling, Employee identification (uniforms, aprons, or name tags), Digital signage, and Branded materials and promotional merchandise. Task 2C: Upon NYCEDC review and instruction, provide additional rounds of creative ideation for selected brand identity in response to NYCEDC feedback.	\$

Architecture and Engineering Collaboration (Anticipated 2027-2029) Task 3A: Participate with NYCEDC in a brand deployment review for each store during the design development phase. The selected architecture and engineering teams will submit a mid-fitout presentation of store location and layout indicating the application of brand related materials, signage, lighting, etc. The brand review output will consist of markups and comments providing direction to ensure consistent application of the brand standards. Task 3B: As-needed review final submittals prior to fabrication of store signage including application to site specific conditions for window graphics, exterior signage, etc.	\$
Account Management Task 4A: Provide regular updates and progress reports to the designated staff throughout the term of the contract. Task 4B: Manage external vendors or subcontractors, as needed.	\$
Total Estimate of Tasks 1-4	\$